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IN THE CIRCUIT COURT OF THE EIGHTH JUDICIAL CIRCUIT
IN AND FOR ALACHUA COUNTY, FLORIDA

CASE NO. 01-2026-CA-001794

CHRISTOPHER A. HANSON,
CHRISTOPHER A. HANSON AS NEXT FRIEND AND ATTORNEY,
Plaintiff,

Vs.

UNIVERSITY OF FLORIDA BOARD OF TRUSTEES
CUSTODIAN OF PUBLIC RECORDS UNIVERSITY OF FLORIDA,

Defendant.

_____ /

BEFORE: THE HONORABLE DONNA M. KEIM

TAKEN BY: DIANE B. GULDIN, RPR
Court Reporter
Notary Public
State of Florida at Large
DATE: September 2, 2026
9:00 a.m. - 11:35 a.m.

PLACE: Via Zoom

HEARING -
ORDER SETTING EVIDENTIARY HEARING

Vincent M. Lucente & Associates
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(1) (The following proceedings began at 9:00 a.m.)

(2) P-R-O-C-E-E-D-I-N-G-S

(3) MR. KIRKCONNELL: Good morning.

(4) THE COURT: Good morning. I'm Judge Keim.

(5) And we're here this morning in the case of

(6) Christopher Hanson as next friend and attorney

(7) for his two minor children versus University of

(8) Florida Board of Trustees.

(9) I will start by having counsel state your
(10) appearances.

(11) MR. HANSON: It's Chris Hanson for
(12) petitioner.

(13) THE COURT: Thank you.

(14) MR. KIRKCONNELL: Sorry. Good morning,
(15) your Honor. James Kirkconnell for the
(16) University of Florida.

(17) THE COURT: Good morning, Mr. Kirkconnell.

(18) And we're scheduled for an evidentiary
(19) hearing today pursuant to Florida Statute 119.
(20) And I -- I believe the procedural posture would
(21) be for Mr. Hanson, for you to begin presenting
(22) your evidence.

(23) Is there any objection to proceeding in
(24) that manner?

(25) MR. HANSON: Your Honor, I just wanted to

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(1) clarify where we're at here.

(2) The case cited by Mr. Kirkconnell at the
(3) last hearing, the University of Florida -- I'm
(4) sorry, the -- the Executive Office of Governor V
(5) Florida Center for Government Accountability 408
(6) So. 3d 839. I just wanted to point out that in
(7) that case they're actually challenging the order
(8) to show cause that had been entered.

(9) In our case we're long past that. The
(10) order to show cause has -- has been entered.
(11) So, it's just a completely different procedural
(12) posture. And my position is that you can't
(13) proceed to the final hearing without addressing
(14) the show cause order.

(15) So, I -- I think the posture is important
(16) in that we are -- are jumping ahead of ourselves
(17) if we're treating this as a final evidentiary
(18) hearing, and there's still the order to show
(19) cause that is out there.

(20) And it's not a situation where petitioner
(21) has to show a prima facie case. And if
(22) respondents rebut it, you go back to the
(23) beginning. You know, it's not -- it's not like
(24) the burden just shifts back to me. The burden
(25) remains on them to show good faith handling of

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(1) it, and complete production. And the
(2) respondents in this case are trying to put that
(3) burden on me. It's -- it's not that type of --
(4) of law. So, I think it's important that we get
(5) that right.

(6) THE COURT: Response, Mr. Kirkconnell?

(7) MR. KIRKCONNELL: Yes, your Honor.

(8) That's incorrect. The Court issued the
(9) order to show cause. We responded. We
(10) addressed every point that was raised in the
(11) petition. At this point per the statute 119.11
(12) we need to have a hearing to determine whether
(13) the University complied. The burden is on the
(14) petitioner to prove that. And we're ready to go
(15) forward, although I do have a few things I would
(16) like to address with the Court. It won't take
(17) very long.

(18) THE COURT: Sure. So, I do believe the
(19) appropriate proceeding at this time is to go
(20) forward under Chapter 119 with the evidentiary
(21) hearing.

(22) I did enter the order to show cause. There
(23) was a response filed by the University, as well
(24) as a reply. There are issues of fact that need
(25) to be addressed at the evidentiary hearing. I

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(1) am required under Florida Statute to conduct an
(2) evidentiary hearing as soon as possible. It
(3) takes precedence over other cases on my docket,
(4) and that's why this hearing was scheduled to
(5) comply with the statute.

(6) MR. HANSON: I --

(7) THE COURT: Mr. Kirkconnell, what else did
(8) you wish to address at this time?

(9) MR. HANSON: I'm sorry, your Honor. May I
(10) just respond to what Mr. Kirkconnell said?

(11) THE COURT: Well, I've already ruled, so --

(12) MR. HANSON: Just to make a record.

(13) THE COURT: We have an hour and a half, Mr.
(14) Hanson. I think it's important that we remain
(15) on the issues before the Court.

(16) MR. HANSON: Okay. I just want to make
(17) a --

(18) MR. KIRKCONNELL: I agree --

(19) MR. HANSON: Okay. If I'm just not allowed
(20) to make a record, then that -- that's fine, your
(21) Honor.

(22) THE COURT: Go ahead and make your record.
(23) Go ahead and make your record.

(24) MR. HANSON: Okay.

(25) THE COURT: I'm going to again caution you

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(1) just based on our last hearing of the importance
(2) of remaining -- remaining on the issues that are
(3) before the Court, and sticking to that so that
(4) we use our time wisely.

(5) MR. HANSON: Okay. Your Honor, I'm just a
(6) citizen coming before you, trying to exercise a
(7) constitutional right. So, I -- I don't really
(8) understand the rush of me. The expedited
(9) nature of the statute is supposed to protect
(10) me, not be weaponized against me. And I feel
(11) like that's -- that's what the Court is doing
(12) because I -- the hearing last week went -- last
(13) week went extremely differently than I
(14) anticipated.

(15) And there's case law that states that it's
(16) inappropriate to jump straight to the
(17) evidentiary hearing when the -- the order to
(18) show cause is -- is still outstanding. And
(19) respondent wants to argue that because they said
(20) that they responded sufficiently that that's the
(21) law of the case now, and that's not how it
(22) works.

(23) THE COURT: Well, that's why we're here.

(24) So, Mr. Hanson, I think you misunderstand.

(25) That's why we're here for an evidentiary

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(1) hearing. I entered an order to show cause. My
(2) order to show cause was complied with. We're
(3) here for an evidentiary hearing. That's the
(4) next step. The reason we're here so quickly is
(5) because the statute requires that this take
(6) place on an expedited basis.

(7) MR. HANSON: Your Honor, I don't know where
(8) the rush was for this.

(9) THE COURT: I'm not going to -- I'm not
(10) going to keep repeating things. And, again, you
(11) can't talk over me. That happened last time.
(12) We just can't get a clear record if you're
(13) talking over me.

(14) Whether -- what is the next issue that --
(15) Mr. Kirkconnell, what issue did you wish to
(16) address?

(17) MR. KIRKCONNELL: First of all, your Honor,
(18) I wanted to just ask for equal time today.

(19) Secondly, as far as evidence stipulations
(20) go, we didn't have a lot of time between the
(21) last hearing and this hearing, but we were able
(22) to stipulate to some evidence. I apologize to
(23) the Court, the packet that I sent you was not
(24) tabbed, but we have agreed that University's
(25) evidence pre-marked A through double F are --

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(1) are stipulated to.

(2) That's all I have, your Honor.

(3) Thank you.

(4) THE COURT: Thank you.

(5) MR. KIRKCONNELL: And we did e-mail this
(6) morning to the Court's office a PDF version of
(7) that -- of that packet with bookmarks, if it's
(8) easier for the Court to use that. And, again, I
(9) apologize that our packet was not tabbed, our
(10) hard copy.

(11) THE COURT: Okay. Thank you.

(12) And I also did receive records delivered
(13) from Mr. Hanson as well, so I have that packet
(14) in front of me.

(15) Mr. Hanson, thank you for submitting that.

(16) Thank you, Mr. Kirkconnell, for submitting
(17) your packet.

(18) With that, Mr. Hanson --

(19) MR. HANSON: Your Honor, I've got --

(20) THE COURT: -- you may proceed.

(21) MR. HANSON: I had a couple more
(22) preliminary issues that I wanted to address.

(23) I was just trying to complete a -- a motion
(24) to disqualify you slash motion for rehearing to
(25) the extent that the oral motion at the hearing

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(1) was -- was overruled. So, I just want that to
(2) be on -- on the record.

(3) I'm probably going to try and file that as
(4) we're -- we're sitting here. But the time for
(5) doing that was compressed. You know, I think
(6) it's 15 days that I have to write that, but
(7) because of the way the hearing was set it cut my
(8) time in half, plus I had to prepare for an
(9) evidentiary hearing, and -- and it matters
(10) whether the Court looks at this as an
(11) evidentiary hearing on the merits or an
(12) evidentiary hearing on the show cause order.
(13) And I think it's completely inappropriate to --
(14) to go forward in that manner.

(15) And then as to the stipulation, I do not
(16) agree that hearsay within hearsay is admissible.
(17) There are documents within Mr. Kirkconnell's
(18) file that relate to individuals at the
(19) University of Florida purportedly performing
(20) activities. I -- I do not agree that anything
(21) that they may have written comes into evidence
(22) for the truth of the matter asserted, unless
(23) they're going to testify.

(24) So, that -- that was a limitation. I
(25) e-mailed that to Mr. Kirkconnell yesterday, so

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(1) he's well aware of that limitation on my
(2) agreement. I agreed to authenticity only.

(3) THE COURT: Mr. Kirkconnell, any response
(4) to that?

(5) MR. KIRKCONNELL: Yeah. We can address the
(6) hearsay issues when they come up. I don't think
(7) it will be a factor, but we can address them as
(8) they come up.

(9) THE COURT: Thank you.

(10) And I do note that it looks like there are
(11) several witnesses present.

(12) Is anyone invoking the Rule of
(13) Sequestration as to --

(14) MR. HANSON: Yeah.

(15) THE COURT: -- the witnesses?

(16) MR. HANSON: Yes, your Honor, I am.

(17) MR. KIRKCONNELL: Your Honor, I would say
(18) that Mr. Hines is named as a party. I think he
(19) might be in the waiting room. I think it would
(20) be appropriate for him to attend the hearing.

(21) But as far as the other witnesses --

(22) THE COURT: I do see him in the waiting
(23) room, so I will admit him.

(24) And, yes, Mr. Hines can attend as the
(25) representative.

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(1) And that leaves, it looks like -- is it
(2) Professor Bambauer and David Cuillier are here
(3) -- hopefully I'm pronouncing the names
(4) correctly, should I put them in the waiting room
(5) at this time or, Mr. Hanson, are you intending
(6) to call one of them?

(7) MR. HANSON: I will call Dr. Cuillier
(8) first.

(9) So, please put the other witnesses in the
(10) waiting room for me.

(11) THE COURT: Okay. So, Dr. Cuillier will be
(12) called.

(13) Professor Bambauer, I am going to -- is it
(14) correct, it's Professor?

(15) MS. BAMBAUER: Yes.

(16) THE COURT: Yes, I see you waiving.

(17) I'm going to put you in the waiting room,
(18) so you will just be waiting there until such
(19) time as you're called.

(20) PROFESSOR BAMBAUER: Okay.

(21) THE COURT: Thank you.

(22) Oh, it looks like I put Mr. Hanson in the
(23) waiting room.

(24) Let me try that again.

(25) Mr. Hanson, I accidentally put you in the

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(1) waiting room.

(2) MR. HANSON: Oh, okay. I just looked up,

(3) and --

(4) THE COURT: I apologize for that. You're

(5) back.

(6) And now let the record reflect that

(7) Professor Bambauer is now in the waiting room.

(8) Dr. Cuillier, I see that you're muted. You

(9) can unmute yourself.

(10) I'm going to swear you in, sir.

(11) Raise your right hand.

(12) Do you swear or affirm the testimony you

(13) provide will be the truth, the whole truth, and

(14) nothing but the truth so help you God?

(15) THE WITNESS: I do.

(16) THE COURT: Thank you.

(17) THEREUPON,

(18) DR. DAVID CUILLIER

(19) was adduced as the witness herein and being first

(20) duly sworn on oath was questioned and stated as

(21) follows:

(22) DIRECT EXAMINATION

(23) BY MR. HANSON:

(24) Q Please state your full name, sir.

(25) **A David Lawrence Cuillier.**

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(1) Q And who is your employer, sir?

(2) A University of Florida.

(3) Q What is your position there?

(4) A I'm director of the Joseph L. Brechner
(5) Freedom of Information Project.

(6) Q How long have you been in that position?

(7) A Three years, a little over three years.

(8) Q And can you just briefly tell me about your
(9) education and -- and qualifications, sir?

(10) A I'm a former journalist, covering
(11) government. Got my Ph.D. at Washington State
(12) University in communication. Taught and researched
(13) Freedom Information at the University of Arizona for
(14) 17 years. Came here to run the Brechner Center,
(15) fortunately. Great job. Various -- tons of
(16) research. I mostly do social science research. I
(17) do not have a law degree. I study access to
(18) information primarily in the states, nationally, and
(19) -- and around the world.

(20) Various accolades. I was president of the
(21) Society of Professional Journalists, and yada, yada,
(22) yada. Testified for congress three times on FOIA,
(23) and all of that. So -- so, yeah, I've dedicated 40
(24) years of my life to the public's right to know.

(25) Q Okay. And is Brechner the Freedom of

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(1) Information Project for the entire country?

(2) **A Well, yeah, we see ourselves as a national**
(3) **research and education center. It started out as**
(4) **Florida specific in 1977, but it's morphed over**
(5) **those 49 years.**

(6) **And now I coordinate National Sunshine**
(7) **Week. I coordinate a national conference on the**
(8) **issue in D.C. I look at research in all the states.**
(9) **I don't really focus on Florida. And to be frank, I**
(10) **-- I'm not that familiar with Florida public records**
(11) **law any more than any other state.**

(12) **Q So, back in 2016 did you have any**
(13) **affiliation with the Brechner Institute?**

(14) **A I don't remember. You know, over time we**
(15) **all run in a circle. I was founding editor of the**
(16) **Brechner Center's Journal of Civic Information peer**
(17) **review journal. I think that was eight years ago I**
(18) **started doing that, maybe that was my first formal.**

(19) **I helped the National Freedom of**
(20) **Information Coalition get housed at Brechner some**
(21) **years ago when I was president of that organization.**
(22) **They since moved.**

(23) **Q Sir, let me -- let me just stop you there.**
(24) **I've got very limited time here. I don't mean to be**
(25) **rude. I would like to actually hear more --**

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(1) **A Oh, sure. Yeah. Go ahead.**

(2) **Q -- but --**

(3) **A Yeah.**

(4) **Q -- I do need to keep it moving here.**

(5) **A Sure.**

(6) **Q When did you first become aware that I had**
(7) **filed a public records request with the University**
(8) **of Florida?**

(9) **A I don't remember. I don't know. I think**
(10) **probably the UF records people e-mailed me to ask**
(11) **for any records responsive to your request. It was**
(12) **probably soon after you filed the request. I don't**
(13) **remember exactly when.**

(14) **Q Okay. I'm going to share my screen with**
(15) **you here -- or do you have access to the records**
(16) **that your attorney filed?**

(17) **A I don't -- I don't have them in front of**
(18) **me. I haven't really been following it closely to**
(19) **be honest. Been pretty busy.**

(20) **Q The --**

(21) **A Been running around doing talks. Oh, the**
(22) **dockets. Okay. Yeah. That's a long list.**

(23) **Q That -- can you just see the one screen**
(24) **currently?**

(25) **A Yeah, I see it. Uh-huh.**

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(1) Q Okay. So, I am going to put your
(2) attorney's document that he filed here up on that
(3) screen hopefully.

(4) Are you able to see that screen, sir?

(5) It looks like we're looking at --

(6) **A Oh, sure. Yeah. Yeah. Sure. Okay.**

(7) Q Okay. So, I am going to show you a -- the
(8) e-mail from March 30th of 2026.

(9) Do you see at the top there it says March
(10) 30th of 2026?

(11) **A Okay.**

(12) Q And it looks like Mr. Hines, and this is
(13) about half way down that page at 11:35 a.m., he
(14) e-mails you, copies someone in the -- or two -- two
(15) people in the general counsel's office. Are you
(16) familiar with Ms. Quillen or Ms. Wood?

(17) **A Vaguely, just via e-mail. I -- I don't**
(18) **know a lot of people at the University that well**
(19) **yet. But, yeah, I -- I remember this.**

(20) Q Before you received this e-mail from Mr.
(21) Hines at 11:35 a.m., were you aware of any public
(22) records request that I had filed?

(23) **A I -- I don't remember. I don't remember**
(24) **exactly when I was aware of it. My -- my**
(25) **recollection is -- is this e-mail was probably when**

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(1) **I was first alerted to the request.**

(2) Q Okay.

(3) **A I suspect their procedure is when they get**
(4) **a request to reach out to the relevant people, and**
(5) **ask them to, you know, get their records as well as**
(6) **their own search, I imagine, but I don't know. John**
(7) **Hines can answer that.**

(8) Q Sure. And I don't want you to speculate,
(9) sir.

(10) **A Yeah.**

(11) Q So, it looks like you received the e-mail
(12) 11:35, and had replied by 11:39, so just four
(13) minutes later?

(14) **A Yeah.**

(15) Q Are you always that quick in responding to
(16) these public records things that come up?

(17) **A Yeah. I'm very fast on the draw. People**
(18) **know me for a very quick response on e-mail, and**
(19) **I --**

(20) Q And, sir, sir, sir --

(21) **A And I --**

(22) Q Stop there. Sir, sir, sir, please.

(23) **A Yes.**

(24) Q I don't need you to editorialize, just
(25) answer the question.

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(1) **A Oh, okay.**

(2) MR. KIRKCONNELL: Your Honor, I'm going
(3) to --

(4) THE COURT: Mr. Hanson, I believe he was
(5) answering the question. You need to -- if
(6) you're going to ask the witness a question, let
(7) him answer the question. That was a responsive
(8) answer.

(9) **A You asked if I always respond that quickly,**
(10) **and I --**

(11) BY MR. HANSON:

(12) Q And that was the end of the answer.

(13) **A Okay.**

(14) Q I don't know why -- why the Court is
(15) inclined on -- on pushing for longer answers, but
(16) that's something that we will explore.

(17) MR. HANSON: So, your Honor --

(18) BY MR. HANSON:

(19) Q Or, Dr. Cuillier, you in your 11:39 a.m.
(20) response asked if you should forward the e-mails
(21) that you had between myself and yourself; right?

(22) **A Uh-huh. Yeah.**

(23) Q And then 11:49 a.m. he says to go -- go
(24) ahead and send over the messages; right?

(25) **A Sure.**

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(1) Q Do you see where I'm talking about, sir?

(2) It's right in the e-mail there. It's the second
(3) line. If you could go ahead and send over those
(4) messages that would be helpful?

(5) A Yeah. Yeah. Okay.

(6) Q Did you comply with that? Did you send
(7) over the messages that you had?

(8) A I'm pretty sure I did.

(9) Q I can't find any record of you doing that.
(10) Is there any reason why you -- you would
(11) not have followed through with that?

(12) A No, I'm pretty sure I did.

(13) Q I had requested all of these
(14) communications, even after I -- I received the
(15) initial response. I requested the metadata, search
(16) logs, and various other documentation, some of which
(17) I'm still waiting on.

(18) MR. KIRKCONNELL: Objection, your Honor. I
(19) don't know if that's a question to the witness
(20) or what.

(21) THE COURT: Response, Mr. Hanson.

(22) Are you just making commentary or is there
(23) a question for the witness?

(24) MR. HANSON: I'll get to a question, your
(25) Honor.

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(1) Thank you.

(2) **A Yeah. Yeah. I have in my records --**

(3) BY MR. HANSON:

(4) Q Sir --

(5) **A -- and e-mail -- oh, go ahead.**

(6) Q So, as far as you know you -- you responded

(7) or you followed through with that, and sent your

(8) records over to Mr. Hines?

(9) **A I -- I did. I see the e-mail right here**

(10) **that I -- I forwarded the e-mail chain that we had,**

(11) **which are the only responsive records.**

(12) Q (CQ) Okay. Any idea why I wouldn't have

(13) that?

(14) MR. KIRKCONNELL: Objection, your Honor.

(15) Calls for speculation.

(16) **A Yeah, I don't know.**

(17) THE COURT: Sustained.

(18) **A I can forward it to you now. I mean, I got**

(19) **it up.**

(20) BY MR. HANSON:

(21) Q If you -- if you have the e-mail

(22) correspondence that you sent forwarding your

(23) correspondence to Mr. Hines, then yes, I would like

(24) to receive that.

(25) MR. KIRKCONNELL: Can we do it after the

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(1) hearing?

(2) I don't know if it's appropriate to be
(3) sending e-mails to counsel questioning
(4) witnesses, and we can handle this later, but --

(5) **A Yeah.**

(6) MR. HANSON: These are documents that were
(7) requested, your Honor. This is part of the
(8) problem, and why this -- this rushing thing is
(9) inappropriate because this is part of what I
(10) requested, and I don't have it. That -- that's
(11) evidence right there beyond any explanations
(12) even needed, they have not adequately complied
(13) with chapter 119. So, I would ask that they be
(14) sent over immediately.

(15) THE COURT: The witness offered to send
(16) them over immediately, I think that's
(17) appropriate.

(18) MR. HANSON: Sure.

(19) THE COURT: You can e-mail them, if you
(20) would, Mr. Cuillier, forward that e-mail to Mr.
(21) Hanson.

(22) Mr. -- do you have his e-mail address?

(23) **A I think so.**

(24) THE COURT: I would also ask that you copy
(25) the Court, Keim -- it's KEIMD@circuit8.org. So,

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(1) C-I-R-C-U-I-T, the number 8.org. And then copy
(2) your counsel.

(3) THE WITNESS: Okie dokie.

(4) What's your e-mail, Chris, I forget, Mr.
(5) Hanson?

(6) BY MR. HANSON:

(7) Q Cahanson, H-A-N-S-O-N, 77 --

(8) **A Oh, I see it here.**

(9) **Okay. So, I got Mr. Kirkconnell, Mr.**
(10) **Hanson, the Court CC'ed, John Hines on it too.**
(11) **Boom. All right.**

(12) THE COURT: Thank you.

(13) THE WITNESS: Yep. You got it.

(14) BY MR. HANSON:

(15) Q Do you have the date on the e-mail that you
(16) sent, sir?

(17) **A It looks like March 30th at noon, exactly**
(18) **12.**

(19) Q Do you know how many pages were sent?

(20) **A There's no page count on e-mails. And I**
(21) **can share screen, if you want to see it.**

(22) Q No. I should be able to pull it up here in
(23) just a second.

(24) **A Okay.**

(25) Q (CQ) I'm going to show you page 94 here of

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(1) your attorney's exhibit composite here.

(2) I apologize. It's 94. Sorry.

(3) It looks like some of the -- the pages are
(4) off from the -- the key here. But, no, here is page
(5) 90 of Mr. Kirkconnell's attachments. Do you see
(6) where it says on March 30th at two p.m. University
(7) of Florida had already gathered 330 pages, excluding
(8) attachments, and it looks like Ms. Wood had an
(9) additional ten pages that she was in -- in receipt
(10) from. Do you have any idea where those records came
(11) from?

(12) MR. KIRKCONNELL: Your Honor, I'm going to
(13) object. He's not a party to this e-mail. So,
(14) it's going to call for speculation.

(15) **A Yeah. Yeah. I don't know.**

(16) THE COURT: Sustained.

(17) **A I didn't handle that, that was someone else**
(18) **at the University. I don't know.**

(19) BY MR. HANSON:

(20) Q And, sir, if you assume that throughout all
(21) of the materials that University of Florida has
(22) produced, they never identify what happened to these
(23) 340 pages nor identified a source to them. Is there
(24) any reason why a public entity in Florida, like
(25) University of Florida would fail or refuse to give

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(1) any information about the source of documents
(2) located in response to a public records request?
(3) **A I don't know. You're -- you're asking me**
(4) **to speculate.**

(5) Q (CQ) No, sir, I'm not asking you to
(6) speculate. I'm asking you whether it's appropriate
(7) for a public agency in Florida to respond to a
(8) public records request, and fail to ever identify
(9) 340 pages that were identified as part of the
(10) search?

(11) MR. KIRKCONNELL: I'm going to object, your
(12) Honor. This -- this question does call for
(13) speculation, and it's not really at issue. We
(14) already sustained the -- he doesn't know what
(15) this e-mail is about.

(16) MR. HANSON: I'm not --

(17) THE COURT: Sustained.

(18) MR. HANSON: I'm not asking about the
(19) e-mail, I'm asking about -- with Dr. Cuillier's
(20) expertise in Florida public records whether it's
(21) appropriate for a university to identify 340
(22) pages of records, and respond --

(23) THE COURT: I heard the question, Mr.
(24) Hanson. So, I -- I sustained the objection to
(25) the question.

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(1) I think if you're asking Mr. Cuillier a
(2) question based on his expertise, you would need
(3) to lay a proper predicate to establish that
(4) expertise. I don't think that's been laid.

(5) MR. HANSON: I thought that I did that with
(6) his experience in the Brechner Institute. He
(7) said that he was the president of these national
(8) organizations, isn't that a predicate that he's
(9) an expert?

(10) THE COURT: I just told you that a
(11) predicate has not been laid.

(12) MR. HANSON: He's the director of the
(13) Freedom of Information Project, that's not a --

(14) THE COURT: I ruled.

(15) Mr. Hanson, if you would like to attempt to
(16) lay a predicate, you may. A predicate has not
(17) been laid at this point to ask Mr. Cuillier
(18) questions as a legal expert regarding responses
(19) to public record requests in Florida
(20) specifically.

(21) BY MR. HANSON:

(22) Q (CQ) Is it possible that these -- or any of
(23) these 340 pages that are the subject of this March
(24) 30th e-mail at -- at page 90 in the exhibit -- in
(25) the exhibit composite, is it possible that some or

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(1) all of them come from your e-mail?

(2) MR. KIRKCONNELL: I'm going to object. It
(3) calls for speculation.

(4) Your Honor, we're here about whether Mr.
(5) Hanson got the records he requested, the
(6) response of records he requested. What he's
(7) getting into now is far beyond the scope of
(8) that. I don't even know what he's trying to get
(9) at, your Honor. So, I'm going to renew my
(10) objection.

(11) THE COURT: Objection sustained.

(12) MR. HANSON: Your Honor, I think that the
(13) Court wants to avoid the truth more than get to
(14) the truth, and I -- I don't know why these
(15) questions are -- are objectionable, other than
(16) that --

(17) THE COURT: Mr. Hanson, Mr. Hanson, I
(18) sustained the objection. I think making
(19) accusations against the Court -- if you want to
(20) make legal arguments, that's fine, but accusing
(21) me of whatever you want to accuse me of is not
(22) going to help you. If you would like to make
(23) legal argument, I'm happy to hear it all day.

(24) MR. HANSON: Your Honor, it's just quite
(25) frustrating. I've been to several Courts, doing

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(1) something that Dr. Cuillier is reportedly an
(2) expert in, and has dedicated his life to helping
(3) people in my situation, and all of the Courts
(4) have the same presentation or reaction to it as
(5) you do. How dare you try and exercise your
(6) constitutional rights. You don't have that
(7) right. We're the powerful people in Florida.
(8) You don't get to tell us that you want to see
(9) what we're doing. You're not allowed to do
(10) that.

(11) THE COURT: Mr. Hanson, I'm going to cut
(12) you off because you -- your experience with
(13) other Courts is not relevant to the proceeding
(14) today. If you -- and this happened at the last
(15) hearing. You wanted to spend a lot of time with
(16) your history with other Courts, and your history
(17) with other cases. Again, we are limited to the
(18) issues before the Court today regarding this
(19) specific public records request. We're here for
(20) an evidentiary hearing for that reason.

(21) You've asked speculative questions of Mr.
(22) Cuillier regarding an e-mail that he's not a
(23) party to. You've asked him to speculate about
(24) the contents --

(25) MR. HANSON: Your Honor, that's not true.

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(1) THE COURT: -- of this e-mail, and I've
(2) sustained the objection to same.

(3) BY MR. HANSON:

(4) Q Did you ever communicate with anyone other
(5) than me about any litigation involving me?

(6) A I'm glad you asked that because the answer
(7) is no, Mr. Hanson. I think that's what this is all
(8) about. You think there's other communications
(9) regarding your situation, and I made no such
(10) communications, written or verbal, I might add. I
(11) didn't talk to anybody on the phone. I don't know
(12) what your situation is about before you called,
(13) before you reached out to me, afterward. Something
(14) about The Bar, Judges, your kids, that's all I know.

(15) Q Okay. So --

(16) A So, I know for a fact there are no
(17) responsive records to your request other than what
(18) you were provided, at least from -- in what I'm
(19) involved with.

(20) So, my -- my answer is that unequivocal no,
(21) which seems to be the heart of this situation. I
(22) don't know what you're looking for. I think you're
(23) looking for a smoking gun, like some conversation
(24) with -- I think your question, sir --

(25) THE COURT: Mr. Cuillier, you've answered

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(1) -- I think you've answered the question.

(2) THE WITNESS: Did I answer it? Okay.

(3) Okay.

(4) BY MR. HANSON:

(5) Q So, you just forwarded the correspondence
(6) to -- it looks like to Mr. Hines, Ms. Wood, and Ms.
(7) Amy Quillen at March -- on March 30th at noon.

(8) So, it was less than a half hour that you
(9) were involved in this back on March 30th of 2026;
(10) right?

(11) **A Yeah. Very quick.**

(12) Q Were you aware of a meeting that took place
(13) between Mr. Hines and Ms. Quillen and Mr.
(14) Kirkconnell on March 30th of 2026?

(15) **A Nope.**

(16) Q Did anyone ever tell you about anything
(17) that was covered during a meeting with those
(18) individuals?

(19) **A No, not really. Didn't communicate much**
(20) **with the public records office. I did what I needed**
(21) **to do, sent the records over I knew were responsive,**
(22) **knowing there's no others, and I thought that was**
(23) **the end of it. And what they have conversations,**
(24) **it's kind of up to them.**

(25) Q (CQ) Were you aware that I was trying to

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(1) get your testimony for a hearing in another case?

(2) MR. KIRKCONNELL: Objection, your Honor.

(3) **A I think -- I think there --**

(4) BY MR. HANSON:

(5) Q Mr. Cuillier --

(6) THE COURT: One moment. Mr. -- Mr.

(7) Cuillier, if you would, just wait one moment

(8) while --

(9) THE WITNESS: Oh, sure.

(10) THE COURT: -- Mr. Kirkconnell places his
(11) objection.

(12) THE WITNESS: Yeah. Sure.

(13) MR. KIRKCONNELL: I object, your Honor.

(14) It's irrelevant. What other case? That's not
(15) what we're here for today.

(16) THE COURT: Mr. Hanson, response?

(17) MR. HANSON: Your Honor, it -- it all
(18) relates to public accountability, and whether
(19) the University of Florida is concealing
(20) information or what the explanation is for these
(21) hundreds of pages that have never been
(22) identified.

(23) THE COURT: Okay. I think if you want to
(24) direct a specific question to Mr. Cuillier, the
(25) objection is sustained as to the question that

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(1) was last asked.

(2) BY MR. HANSON:

(3) Q (CQ) Sorry. I'm just trying to get another
(4) PDF up here.

(5) I want to move to page 94 of this one here.

(6) Do you see the e-mail there from John Hines
(7) at April -- on April 3rd of 2026 at 9:07 a.m.?

(8) **A Okay.**

(9) Q He --

(10) **A Yes.**

(11) MR. KIRKCONNELL: I'm going to object just
(12) even to that question, and the questions that
(13) will follow. This is another e-mail where Dr.
(14) Cuillier is not a party to the e-mail. So, why
(15) are we asking him about it?

(16) THE COURT: Mr. Hanson?

(17) MR. KIRKCONNELL: Objection is relevance.

(18) THE COURT: Response?

(19) MR. HANSON: Your Honor, there's so many
(20) irregularities with the handling on University
(21) of Florida's end, and I need to be able to ask
(22) questions about it to understand what the
(23) irregularities mean, and --

(24) THE COURT: So, I --

(25) MR. HANSON: I don't understand --

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(1) THE COURT: I'm going to cut you off just
(2) for the sake of time. I -- I understand you
(3) want to ask about irregularities. It seems like
(4) if the irregularities you're focused on are the
(5) response to the public records request, I think
(6) Dr. Cuillier just testified he forwarded the
(7) documents, in response he hasn't been privy to
(8) any conversations or meetings regarding the
(9) response to the public record request. And, so,
(10) to go on now and ask him about documents
(11) produced in an investigation that he had nothing
(12) to do with, a public records request where he's
(13) already said this is the extent of my
(14) involvement, I -- I provided this e-mail, I -- I
(15) don't see the effectiveness of that.

(16) So, I -- I will sustain the objection.

(17) Is there anything further for this
(18) witness --

(19) MR. HANSON: Yes.

(20) THE COURT: -- in light of his testimony?

(21) MR. HANSON: Yes, there is, your Honor.

(22) BY MR. HANSON:

(23) Q (CQ) And what is the prejudice that's
(24) involved with asking -- allowing me to explore
(25) UF's and the Brechner Institute's handling of

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(1) this?

(2) MR. KIRKCONNELL: Your Honor, to the extent
(3) that's a question to the witness, I'm going to
(4) object on relevance.

(5) THE COURT: Sustained.

(6) BY MR. HANSON:

(7) Q (CQ) Mr. Cuillier, have you ever been
(8) quoted as saying that the public records statutes in
(9) Florida are becoming tools of secrecy rather than
(10) tools of public access to government information?

(11) MR. KIRKCONNELL: Objection. Relevance.

(12) THE COURT: What's the relevance, Mr.
(13) Hanson?

(14) MR. HANSON: Because the University of
(15) Florida and Brechner Institute are doing exactly
(16) what they advocate against. If -- if the
(17) University of Florida, Brechner Institute was
(18) looking at this case, and it involved any other
(19) entity other than itself, they would have a
(20) very, very different view of this, and that is
(21) -- is certainly something that is relevant to
(22) these proceedings, and -- and necessary to
(23) explore.

(24) THE COURT: I'll sustain the objection.

(25) BY MR. HANSON:

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(1) Q (CQ) Have you ever been quoted as saying
(2) that it's really not fair that these agencies don't
(3) turn documents over, and force people to spend 10 or
(4) \$20,000 trying to get it, which most people can't
(5) do?

(6) MR. KIRKCONNELL: Objection. Relevance.

(7) THE COURT: I'll sustain that objection.

(8) And, Mr. Hanson, I'll remind you that you
(9) really need to limit the questions to the issues
(10) before the Court --

(11) MR. HANSON: And, your Honor --

(12) THE COURT: -- in compliance with the --
(13) with the public records request.

(14) MR. HANSON: Okay.

(15) BY MR. HANSON:

(16) Q Let's go to the May 4th of 2026 e-mail.

(17) Mr. -- or, I'm sorry, Dr. Cuillier, are you
(18) aware of whether there were any materials located in
(19) the search that I requested of the Court that were
(20) withheld as not public records?

(21) MR. KIRKCONNELL: Objection, your Honor.

(22) This has been asked and answered.

(23) THE COURT: Overruled.

(24) **A So, what's the question again?**

(25) BY MR. HANSON:

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(1) Q Did you ever become aware that the
(2) University of Florida identified any documents in
(3) response to searches relating to my public records
(4) requests that were withheld on the basis that they
(5) were not public records?

(6) A Yeah, I don't know. I wasn't involved in
(7) that. I -- you know, I saw some of the materials on
(8) the docket skimming. It looks like they gathered up
(9) a bunch of records that weren't responsive because
(10) they hit on your key words, which is typical. But
(11) that means -- doesn't mean they're responsive to
(12) your request.

(13) Q Are you aware --

(14) A The response -- oh, go ahead. Sorry.

(15) Q Did you ever become aware that there were
(16) any documents that were identified during the
(17) searches related to my public records requests that
(18) related to me or the Judges involved in my cases
(19) that were withheld or not identified on the basis
(20) that they were classified not public records?

(21) A Yeah, I don't know. I wasn't part of that.

(22) Q Do you know who would know?

(23) A Who would know?

(24) Q Yeah.

(25) A Well, the folks who did the search. I

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(1) **assume Mr. Hines, they're the ones who conducted the**
(2) **search of the IT system or whatever, which I think**
(3) **is standard.**

(4) Q What makes you think that Mr. Hines did the
(5) IT search?

(6) A Or whoever did, him or his delegate. The
(7) public records office, they're the ones who do their
(8) searches, right. I -- and I provided everything I
(9) knew of, which would probably be the only thing
(10) relevant to your situation.

(11) Q And that's speculating; right? You're
(12) speculating when you say that; right?

(13) MR. KIRKCONNELL: I'm going to object, your
(14) Honor. He's --

(15) A Well, no, I'm not speculating because --

(16) MR. KIRKCONNELL: Dr. Cuillier, let me
(17) finish, please.

(18) THE COURT: One moment, sir. Let Mr. --
(19) let your attorney place the objection on the
(20) record.

(21) THE WITNESS: Sure.

(22) MR. KIRKCONNELL: I'm going to object to
(23) Mr. Hanson interrupting the witness. The
(24) question called for speculation. And, so, when
(25) the witness speculates, that's what Mr. Hanson

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(1) asked him to do. He should be allowed to answer
(2) the question.

(3) THE COURT: I agree.

(4) **A Yeah, I'm not speculating. I know for a**
(5) **fact that there are no records responsive to your**
(6) **request that I know of regarding your situation and**
(7) **you that have not been provided to you. I know that**
(8) **for a fact. So --**

(9) BY MR. HANSON:

(10) Q You know -- I'm sorry. But I just need to
(11) clarify that because I thought you just answered it
(12) the opposite way, that you didn't know if there were
(13) any records identified related to me that were not
(14) produced?

(15) **A Well, I -- I don't know what they gathered,**
(16) **right, that's -- that's what I said. I -- I don't**
(17) **know what their search entailed. All I know is**
(18) **there are no records in the world in existence**
(19) **regarding your case, the case numbers, your Judges,**
(20) **and me that I have produced, there are none, other**
(21) **than those e-mails that you were provided. That's**
(22) **the truth.**

(23) Q That you produced?

(24) **A Well, yeah, that -- so, maybe another**
(25) **University of Florida employee may be aware of this**

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(1) in the psychology department, I don't know. But as
(2) far as what I know, there is no communication
(3) between me, The Bar, the other Judges, whoever
(4) regarding your situation, other than what was
(5) provided. No even verbal communications, I'll go
(6) even that far, nothing.

(7) Q Did -- did you ever communicate with anyone
(8) in journalism or media related to any of the
(9) litigation I'm involved in?

(10) A No.

(11) Q Did you ever --

(12) A No reporter reached out to me. I reached
(13) out to no reporter.

(14) Q That's not my question. That's not my
(15) question, sir.

(16) A Oh.

(17) Q I'm asking you whether you had any
(18) communications ever with anyone in media or
(19) journalism related to my cases or any of the
(20) litigation I'm involved in?

(21) MR. KIRKCONNELL: I'm going to object.

(22) BY MR. HANSON:

(23) Q It's a yes or no question.

(24) MR. KIRKCONNELL: He did answer that
(25) question. That's my objection, asked and

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(1) answered.

(2) THE COURT: Overruled.

(3) A I had Jane, Professor Bambauer reach --
(4) reach out to me, called me when she got some
(5) subpoena or something. Says, what's going on?

(6) I said, I don't know.

(7) And that was the extent of that. You can
(8) ask her about it.

(9) Ted Bridis, a colleague at the college,
(10) called me. Said, I'm getting some e-mail from some
(11) guy.

(12) I said, I don't know.

(13) And that was the extent of that
(14) conversation. That was it.

(15) And other than a few phone calls with --
(16) with the attorneys just to find out, well, what's
(17) the -- what's going on, that's the extent of my
(18) total involvement in your situation.

(19) BY MR. HANSON:

(20) Q How do you spell Todd's name?

(21) A Ted, Ted Bridis. Apparently you reached
(22) out to him a month -- I think probably trying to get
(23) coverage, which I --

(24) Q How do you spell his last name, sir?

(25) A B-R-I-D-I-S.

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(1) Q Did you input -- is he employed with the
(2) University?

(3) A Yeah. He's a -- he's a professor. You
(4) reached out to him apparently, he said.

(5) Q When was that communication that you had
(6) with him?

(7) A I don't remember.

(8) Q What did you talk to him about?

(9) A He -- he just wondered what was going on.
(10) I said, I don't know. He's looking for
(11) records I guess on something involving his
(12) situation. I know nothing about it. Very short
(13) phone call.

(14) Q So, I have that you communicated with
(15) Jane --

(16) A Uh-huh.

(17) Q -- Bambauer, and you communicated with Todd
(18) Bridis?

(19) A Ted.

(20) Q And then you communicated -- I'm sorry.
(21) Ted Bridis?

(22) A Yeah.

(23) Q And then you communicated with your
(24) attorneys for this, which I assume is Mr.
(25) Kirkconnell and Ms. Quillen?

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(1) **A Yeah. And I had a few phone calls with**
(2) **them just to see what the status was.**

(3) Q Other than Mr. Bridis, Ms. Bambauer, and
(4) Ms. Quillen, and Mr. Kirkconnell, did you ever have
(5) any communications with anyone in media or
(6) journalism about me, and the litigation I'm involved
(7) in?

(8) **A I did not. Nobody else reached out to me,**
(9) **and I didn't reach out to anybody else.**

(10) Q (CQ) Yeah, I would like to go to -- oh,
(11) before we do that. Here is page 95 of Mr.
(12) Kirkconnell's search -- or exhibit.

(13) We're looking at a search chart here.

(14) Do you see where it says Hanson, 113
(15) messages, 98.26 percent; do you know what that is?

(16) **A I do not.**

(17) MR. KIRKCONNELL: Objection. This is
(18) another e-mail where Dr. Cuillier is not part of
(19) it. It's going to call for speculation.

(20) THE COURT: Sustained.

(21) **A I don't know what it is.**

(22) BY MR. HANSON:

(23) Q (CQ) And here, sir, looking at a UFIT
(24) e-mail, it's page 95 of the Mr. Kirkpatrick --
(25) Kirkconnell composite. It says, the search

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(1) concluded with 103 messages, which resulted in 330
(2) pages. Do you have -- and it looks like it has your
(3) mailbox under it. Do you know if that was a search
(4) of your mailbox?

(5) MR. KIRKCONNELL: Same objection.

(6) **A Yeah, I don't -- I don't know.**

(7) THE COURT: I'm going to -- I'm going to
(8) sustain the objection. Dr. Cuillier has already
(9) -- already testified that he was not involved in
(10) this public records request response other than
(11) to provide the documents to Mr. Hines or -- or
(12) the IT department. And to keep going through,
(13) and asking questions about e-mails that he's not
(14) a party to does not make sense. I've already
(15) sustained multiple objections to the speculative
(16) nature of those questions.

(17) And -- and, again, we are limited on time,
(18) you've spent quite a bit of time with Dr.
(19) Cuillier, who has already testified repeatedly
(20) about his lack of involvement.

(21) MR. HANSON: Your Honor, I don't know why
(22) you're so rushed. Shouldn't -- this is my
(23) constitutional right. Shouldn't it take how
(24) long it takes?

(25) THE COURT: Mr. Hanson, proceed with your

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(1) questions. I'm just warning you --

(2) MR. HANSON: So, no?

(3) THE COURT: -- that we're running out of
(4) time.

(5) BY MR. HANSON:

(6) Q Did you send an e-mail to Mr. Hines on May
(7) 4th of 2026, when you received some communication
(8) from me?

(9) **A May 4th, yeah, I did.**

(10) MR. KIRKCONNELL: Your Honor, I'm going to
(11) ask if there's an exhibit to go along with this
(12) question, that Mr. Hanson let Dr. Cuillier know
(13) about it, so that we can all be on the same
(14) page.

(15) MR. HANSON: Yes. It's page 148 of your
(16) exhibit composite here. It looks like
(17) you forwarded it --

(18) THE COURT: That's what's on the screen; is
(19) that correct, Mr. Hanson?

(20) MR. HANSON: Yes, it is. It's -- I don't
(21) know if you can see my curser, but it's right
(22) here from David Cuillier, four p.m., May 4th of
(23) 2026.

(24) BY MR. HANSON:

(25) Q Did you have more involvement once you

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(1) received that e-mail on May 4th of 2026?

(2) MR. KIRKCONNELL: Your Honor, I'm going to
(3) object. This request -- I beg your pardon. I
(4) will withdraw my objection, your Honor. I
(5) apologize. Ignore my objection.

(6) Thank you.

(7) A Yeah, I got this e-mail in my inbox. I
(8) wasn't sure if it got to them, so I just forwarded
(9) it to them just in case, you know. And, so, yeah, I
(10) just let them know, hey, heads up, this came in my
(11) inbox, I don't know if you got it. And that was the
(12) extent of the -- in fact, I -- I wrote, I assume
(13) this e-mail gets to you, John, but just in case the
(14) e-mail address -- address goes to inbox someone
(15) doesn't check, here is -- here is an e-mail.

(16) I'm trying to help you out.

(17) BY MR. HANSON:

(18) Q So, on page 117 here, Mr. Hines sends an
(19) e-mail to you at 11:37 a.m., and notes that the
(20) requester is challenging the production that was
(21) made, then he highlights some things.

(22) Your response to his questioning you about
(23) whether you would have any records was, no, I am not
(24) aware of any other records that would be responsive
(25) to this request, other than the perfunctory e-mails

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(1) between you and me in fulfilling the -- fulfilling
(2) the response.

(3) Did you ever change that position on
(4) whether there would be responsive e-mails between
(5) when you sent this e-mail on May 5th and today?

(6) **A I'm sorry. What? What are you saying?**
(7) **What are you asking?**

(8) Q So, on May 5th you said that you -- you
(9) didn't have any other records about me; right?

(10) **A Right. Yeah. Uh-huh.**

(11) Q Did you ever change your position in that
(12) regard any time after that?

(13) **A No. No. I mean, there have been e-mails**
(14) **produced since May 5th to today, right. I mean --**

(15) Q But I'm talking about your position of
(16) whether you would have any responsive records?

(17) **A Oh, yeah. No, that hasn't changed. What**
(18) **-- what I sent over was what I had, including -- I**
(19) **think this e-mail was specific, you know, did you**
(20) **check your socials, your text messaging, all of**
(21) **that. I don't text work stuff. I don't do socials.**
(22) **I don't do Signal. I don't do any other. So, I**
(23) **knew for a fact there were no other records**
(24) **responsive to your request other than what I already**
(25) **sent.**

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(1) Q So, you see here on May 6th -- so, this is
(2) one day after the e-mail we just talked about, you
(3) sent an e-mail to Ms. Quillen, Ms. Bambauer, and Mr.
(4) Hines. It says, I don't have any regarding those
(5) case numbers or any case numbers. I don't know what
(6) any of those terms are or any of the individuals.
(7) However, when I do search for surveillance video it
(8) comes up with a few dozen e-mails from the past
(9) several years unrelated to Mr. Hanson. If you want,
(10) I can pull those. Feel free to do so.

(11) What was it that caused you to reconsider,
(12) and look again between May 5th and May 6th?

(13) A Just triple checking. You know, I just
(14) wanted to make sure, did I miss anything, and -- and
(15) I wanted clarify, were they looking for literally
(16) every record that included every key word you asked
(17) for, even if it wasn't related to you in your
(18) situation. I just wanted to make sure that was the
(19) situation. And -- and I don't know, is that what
(20) you wanted?

(21) Q Well, sir, I -- have you ever heard of that
(22) ever since you've been at University of Florida,
(23) where someone did a public records request, and they
(24) just wanted stuff from everybody with the last name
(25) that they had?

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(1) **A** **No, I think that would be silly. So,**
(2) **that's why I didn't forward that stuff initially**
(3) **because I knew it wasn't what you wanted. It wasn't**
(4) **-- it wasn't responsive to what you asked for.**

(5) **Q** **Did you forward it eventually?**

(6) **A** **No, because I -- I think the response is,**
(7) **no, don't worry about it or he didn't respond. I**
(8) **don't know. I can't remember. So, yeah, I think**
(9) **that's just commonsense. Why --**

(10) **Q** **How --**

(11) **A** **Why give you a bunch of stuff that's not**
(12) **responsive?**

(13) **Q** **How often do you have to deal with public**
(14) **records requests coming into University of Florida**
(15) **where you have to be part of the response?**

(16) **A** **I think there was only one other time,**
(17) **maybe twice. It doesn't happen very often.**

(18) **Q** **Given your area of expertise, are you**
(19) **consulted on those couple of cases that have come in**
(20) **involving you or any other public records cases that**
(21) **University of Florida responds to?**

(22) **A** **Regarding me? Yeah, I think they typically**
(23) **reach out, and ask the person to pull everything**
(24) **together that they know of.**

(25) **Q** **Do they ask for your input because you're**

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(1) an expert in the field?

(2) **A No. No. They never have, which I don't**
(3) **mind. It doesn't bother me. I'd tell them to be**
(4) **transparent, and probably to change your practices**
(5) **because that's what I do for a living.**

(6) **Q So, you think that some of their practices**
(7) **need changing at -- at UF's records department?**

(8) **A I think every government agency needs to**
(9) **improve its records dissemination, but that's from**
(10) **my perspective, that's where I come from.**

(11) **UF is like any other public agency, good**
(12) **and not so good in my opinion. But, you know, they**
(13) **do what they can.**

(14) **Q And it looks like on May 6th of 2026 at**
(15) **5:36 p.m. you responded to Ms. Bambauer, Ms.**
(16) **Quillen, Mr. Hines, and Ms. Wood, saying, oh, in**
(17) **some e-mails regarding Thirteenth Circuit, but**
(18) **unrelated to Mr. Hanson. What did you do with those**
(19) **records?**

(20) **A I didn't forward them, they were unrelated**
(21) **to you, your case. I don't -- I don't even remember**
(22) **what they were about. I can't imagine what they**
(23) **would be about. I don't get involved in Florida**
(24) **stuff very much to be honest.**

(25) **Q (CQ) So, if University of Florida --**

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(1) **A I --**

(2) Q -- is going to send me records in response
(3) to a public records request, wouldn't it make more
(4) sense to send me stuff about the circuit court that
(5) I'm inquiring about as opposed to other people that
(6) just happen to have the same last name?

(7) MR. KIRKCONNELL: Objection. Calls for an
(8) opinion. And I think the witness already
(9) answered the question any way.

(10) THE COURT: Sustained.

(11) **A I don't even think it was a Thirteenth**
(12) **Circuit in Florida, and I think it was --**

(13) MR. KIRKCONNELL: Dr. Cuillier, Dr.
(14) Cuillier --

(15) THE WITNESS: Oh, sorry.

(16) MR. KIRKCONNELL: -- if the Court sustains
(17) the objection, you don't have to answer it.

(18) THE WITNESS: Oh, okay. Okay. Okay.
(19) Sorry, I like to talk.

(20) BY MR. HANSON:

(21) Q (CQ) Okay. I do want to get those records
(22) for -- for the record. Please provide those at your
(23) earliest convenience. We can deal with your
(24) attorney about that. But if responsive records were
(25) identified related to the Thirteenth Circuit, that's

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(1) definitely something I need to get.

(2) MR. KIRKCONNELL: Your Honor, I'm going to
(3) object. If Mr. Hanson wants to make a public
(4) records request, he can go through the portal.

(5) MR. HANSON: You're -- you're suggesting I
(6) start over again?

(7) Why doesn't University of Florida just want
(8) to get this over with?

(9) THE COURT: Mr. Hanson, it's not
(10) appropriate to request that the -- that the
(11) witness produce records right now. Your -- your
(12) response is noted. If you would like to make
(13) argument, that's fine. Please move on. You've
(14) used the majority of the time already on this
(15) witness who -- who needs to be cross examined,
(16) and you have another witness in the waiting room
(17) as well as another one sitting here in the
(18) courtroom.

(19) BY MR. HANSON:

(20) Q At page 158 here in Mr. Kirkconnell's
(21) exhibit, are you aware of -- of a tactic that
(22) agencies will sometimes use where they segregate a
(23) group of records?

(24) A What do you mean, segregate a group of
(25) records?

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(1) Q (CQ) Where there's a public records
(2) request, and there's certain records that are put
(3) into a different file and sent separately?

(4) MR. KIRKCONNELL: Objection. The witness
(5) has already said he doesn't know what the
(6) process was for this, and we're talking about
(7) other records requests for other agencies.

(8) You already mentioned to counsel that we're
(9) short on time. I still have questions for this
(10) witness.

(11) THE COURT: The objection is sustained.

(12) Again, Mr. Hanson, limit it to this public
(13) records request.

(14) MR. HANSON: Okay.

(15) BY MR. HANSON:

(16) Q (CQ) So, look at page 157 here to -- it
(17) looks like it goes on to 158.

(18) Do you see where it says, from Ms. Wood, in
(19) addition to the 621 pages received from UFIT on
(20) 4/24, I'm in receipt of additional potentially
(21) responsive records, 88 pages; do you see where I'm
(22) referring to?

(23) MR. KIRKCONNELL: Your Honor, I'm going to
(24) renew my objection as to e-mails that don't
(25) include Dr. Cuillier.

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(1) Your Honor, we have a witness who is copied
(2) on this e-mail sitting in the Court. I am going
(3) to object that this is outside of the scope,
(4) it's --

(5) THE COURT: Sustained.

(6) MR. KIRKCONNELL: Thank you.

(7) MR. HANSON: It's amazing that University
(8) of Florida and Brechner are so desperate to hide
(9) from this. Why?

(10) THE COURT: Mr. Hanson, you are -- you are
(11) questioning a witness, please limit that.

(12) MR. HANSON: You're -- you're concerning
(13) too, Judge.

(14) THE COURT: You may question the witness.
(15) Excuse me.

(16) MR. HANSON: You're very concerning
(17) yourself. I think that it's -- it's like you --

(18) THE COURT: Mr. Hanson --

(19) MR. HANSON: And you say --

(20) THE COURT: Quit -- quit making personal
(21) attacks against the people involved in this
(22) case, including myself, and the other parties,
(23) and finish your questioning of this witness.

(24) MR. HANSON: You're creating a tyrannical
(25) situation where the truth doesn't matter.

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(1) THE COURT: I'm asking you --

(2) MR. HANSON: And it's really, really
(3) concerning.

(4) THE COURT: -- finish questioning the
(5) witness.

(6) MR. HANSON: He's with the Brechner
(7) Institute, and he was getting judged --

(8) THE COURT: If you have another question
(9) for the witness --

(10) MR. HANSON: -- they're working together to
(11) do that.

(12) THE COURT: You cannot talk while I'm
(13) talking, there won't be a clear record.

(14) MR. HANSON: Your Honor, what --

(15) THE COURT: What I'm telling you right now
(16) is --

(17) MR. HANSON: Your Honor, what you're doing
(18) to me is far worse than what I'm doing to you.

(19) THE COURT: -- if you have any further
(20) question for this witness, sir, ask them now.

(21) MR. HANSON: Okay. What you're doing is
(22) far worse to me, your Honor, far, far worse.
(23) You're gaslighting me. Asking me to -- asking
(24) me to go along with this charade, where you just
(25) want me to shut up.

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(1) THE COURT: Mr. Hanson, quit attacking the
(2) Court.

(3) MR. HANSON: You deserve it, your Honor.
(4) Someone needs to.

(5) THE COURT: Ask questions -- ask the
(6) witness questions.

(7) MR. HANSON: Someone needs to attack you.

(8) THE COURT: Ask the witness a question. If
(9) you do not ask the witness a question, I'm going
(10) to assume that you're finished questioning the
(11) witness.

(12) MR. HANSON: No, I have more questions,
(13) your Honor. I'm just very frustrated.

(14) THE COURT: Proceed. You have five more
(15) minutes.

(16) BY MR. HANSON:

(17) Q Are you involved with the Brechner Center
(18) website at all, sir?

(19) **A I am. I updated it.**

(20) Q (CQ) When did you update it, sir?

(21) MR. KIRKCONNELL: Your Honor, I'm going to
(22) object to this line of questioning. It's
(23) outside of the scope of what the issue is before
(24) the Court.

(25) THE COURT: Sustained.

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(1) MR. HANSON: What's the -- why? Your

(2) Honor, I can't have a little leeway?

(3) THE COURT: You've had plenty of leeway.

(4) Move on to the next question.

(5) MR. HANSON: Okay. Well, I'm going to

(6) certify that question for the record.

(7) And actually I want to go back and state

(8) that I -- I want to certify all of the questions

(9) that have been -- had objections sustained.

(10) BY MR. HANSON:

(11) Q Are you aware of the search of Professor

(12) Bambauer's e-mail stalling on March 9th?

(13) **A No, I wasn't involved in all of that stuff.**

(14) Q Are you aware of that happening, though?

(15) **A Again, I think I skimmed some of the docket**

(16) **documents, and noticed -- I think you mentioned**

(17) **something about it, but that's all I know.**

(18) Q Is that something where you -- where you

(19) informed the records custodian or counsel that if

(20) the search didn't go through we need to finish that,

(21) we have to comply with this constitutional access to

(22) records or did you not say anything?

(23) **A No, I wasn't -- wasn't my business to say**

(24) **something, and let them do their job.**

(25) Q But you --

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(1) **A I wasn't getting involved with the record**
(2) **search, that's not my job.**

(3) Q (CQ) But you would agree that if my first
(4) contact with Professor Bambauer was just after March
(5) 9th, and if the search malfunctioned as of March
(6) 9th, it would be important to complete that search;
(7) right?

(8) MR. KIRKCONNELL: Objection. That calls
(9) for speculation. The witness has already said
(10) he doesn't get involved in that stuff.

(11) THE COURT: Sustained.

(12) BY MR. HANSON:

(13) Q Did you ever send a text message relating
(14) to me or any of the litigation I'm involved in, sir?

(15) **A Nope, that I recall.**

(16) Q Did anyone search your device for any texts
(17) that you sent mentioning me or the relevant key
(18) words?

(19) **A Nobody searched it, no need to because I**
(20) **know what I text. I don't use my phone for work.**

(21) Q (CQ) But, sir, is that a proper way for a
(22) public institution to handle a public records
(23) request, just saying, trust me, I know?

(24) MR. KIRKCONNELL: I'm going to object, your
(25) Honor. The witness said he doesn't have any

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(1) records. It doesn't matter what the process was
(2) for searching.

(3) THE COURT: Sustained.

(4) BY MR. HANSON:

(5) Q Did anyone at the University ever ask you
(6) to produce the e-mails that came up related to
(7) surveillance of the Thirteenth Circuit?

(8) A Well, those e-mails that you showed asked
(9) me to take a look, and I did check, and I just
(10) checked now. By the way, it's Thirteenth Circuit in
(11) South Carolina, not in Florida. It did not seem
(12) relevant to you or your situation.

(13) Q Did anyone with the University ask you to
(14) forward the records to them that -- that came up the
(15) Thirteenth Circuit or surveillance video?

(16) A I forget what the e-mail chain was. I -- I
(17) sent -- I think you showed the one e-mail I sent,
(18) hey, there -- found a few Thirteenth Circuit, it's
(19) relevant to this situation, do you want me to
(20) forward them? I can't remember what the response
(21) was. Again, Thirteenth Circuit outside of Florida.
(22) Key words that are -- it's irrelevant, stuff you
(23) wouldn't want.

(24) Q Sir, the materials that I have from the
(25) University of Florida show real heavy activity on

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(1) March 30th, after there was a meeting where my case
(2) was covered, and then quiet until April 22nd when I
(3) followed up, and then more activity after that.

(4) Are you aware of any legal review process
(5) that was completed related to my request or the
(6) records that came back?

(7) MR. KIRKCONNELL: I'm going to object. The
(8) witness already said he has not consulted on
(9) legal review. He has said he's not involved in
(10) this particular response.

(11) MR. HANSON: I think that mischaracterizes
(12) his testimony.

(13) MR. KIRKCONNELL: I would add that five
(14) minutes has transpired.

(15) THE COURT: The witness can answer that
(16) question.

(17) **A Yeah, I'm not aware. I wasn't involved in**
(18) **any of that.**

(19) THE COURT: And, Mr. Hanson, you have one
(20) last question of this witness.

(21) BY MR. HANSON:

(22) Q (CQ) Are you aware of any reason why there
(23) are batches of 330 pages as of March 30th, an
(24) additional ten that same day for 340, April 24th we
(25) had 621 pages, 17 messages added on May 4th, 109

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(1) pages also added on May 4th, 88 pages set aside on
(2) May 7th? Are you aware of any reason why the
(3) University of Florida has not simply identified
(4) those records that were found or -- or noted in
(5) searching for my public records request?

(6) MR. KIRKCONNELL: Objection. Calls for
(7) speculation.

(8) THE COURT: Sustained.

(9) MR. HANSON: Your Honor, it's a --

(10) MR. KIRKCONNELL: I have a few questions
(11) for Dr. Cuillier.

(12) MR. HANSON: But, your Honor, I just need
(13) to make a record.

(14) He -- the answer to that could be yes, that
(15) he does have information about it, and you're
(16) preventing me from getting it.

(17) THE COURT: He's already testified multiple
(18) times that he was not involved in the responses,
(19) public records request, other than to forward
(20) the records, and the e-mails that he's testified
(21) to.

(22) MR. HANSON: I think that mischaracterizes
(23) the testimony, but we have a court reporter
(24) here, so we will be able to --

(25) THE COURT: Yes, we do.

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(1) Mr. Kirkconnell, you may proceed.

(2) MR. KIRKCONNELL: Thank you.

(3) CROSS EXAMINATION

(4) BY MR. KIRKCONNELL:

(5) Q Dr. Cuillier, thank you for being here this
(6) morning, and for spending your time with us.

(7) Did you receive an e-mail from Mr. Hanson
(8) last Friday where he copied a bunch of media people?

(9) **A Yeah, I saw that.**

(10) Q And did he attack you in that e-mail?

(11) MR. HANSON: I'd just object that it's
(12) vague, and just read it, don't -- don't
(13) mischaracterize it or characterize it.

(14) MR. KIRKCONNELL: Your Honor, I would be
(15) happy to read the quote into the record, and
(16) then Mr. -- Dr. Cuillier can say whether or not
(17) that was part of the e-mail.

(18) THE COURT: That's fine.

(19) MR. KIRKCONNELL: Okay.

(20) BY MR. KIRKCONNELL:

(21) Q And to UF, is it your plan to simply cover
(22) this up, and keep Dr. Cuillier in his position like
(23) he's a good faith advocate for Freedom of
(24) Information? It's hard to imagine worse hypocrisy?

(25) **A Yeah, I think I saw that in there.**

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(1) Q Did -- did Mr. Hanson also suggest that
(2) Brechner, and my office, quote, are proceeding in
(3) bad faith, and Judge Donna Keim has demonstrated that
(4) she is complicit, and is willing to facilitate that
(5) corruption?

(6) A Yeah, I think I recall that as well.

(7) Q Okay.

(8) MR. KIRKCONNELL: Your Honor, I have no
(9) more questions for this witness.

(10) Thank you.

(11) MR. HANSON: I have -- I have just a few
(12) more questions, and it relates to what -- the
(13) comments that I made there.

(14) REDIRECT EXAMINATION

(15) BY MR. HANSON:

(16) Q Over the past several years has there been
(17) an unprecedented --

(18) THE COURT: Mr. Hanson, your -- your
(19) questions are limited to the questions that were
(20) just asked. So, this is your redirect.

(21) MR. HANSON: Right.

(22) THE COURT: Very limited.

(23) MR. HANSON: Right.

(24) THE COURT: So, what happened over the last
(25) several years is irrelevant. He was asked about

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(1) this particular e-mail only.

(2) MR. HANSON: Right. But I want to explain
(3) the -- the basis for it or --

(4) THE COURT: If you want to testify, you
(5) can --

(6) BY MR. HANSON:

(7) Q Mr. Cuillier --

(8) THE COURT: You can testify, sir, but you
(9) can't testify by -- by questioning Mr. -- Dr.
(10) Cuillier.

(11) So, do you have a question for him in
(12) redirect?

(13) MR. HANSON: Yes.

(14) May -- may I ask it?

(15) THE COURT: Go ahead.

(16) BY MR. HANSON:

(17) Q (CQ) Assuming there is a history of over
(18) two years where one simple litigation issue, where a
(19) Judge diverged from the legally mandated results has
(20) resulted in thousands of hours of work, a weekend
(21) where I was looking forward to spending with my
(22) family, but I had to work all weekend preparing for
(23) this, and every Court cuts me short on time, and
(24) protects the defendants or the -- the Judges that
(25) are involved as though there is an ironclad

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(1) allegiance or club where a citizen like me is simply
(2) likely out of luck in -- in getting public records,
(3) not because the -- the facts wouldn't entitle me to
(4) them, just because the system is that broken?

(5) MR. KIRKCONNELL: Your Honor, I'm going to
(6) object on three grounds.

(7) Number one, it calls for a hypothetical.

(8) Number two, it's argumentative.

(9) And, number three, counsel is testifying.

(10) THE COURT: Sustained.

(11) MR. HANSON: I can't ask a hypothetical?

(12) THE COURT: You can ask a question in
(13) redirect regarding the question Mr. Kirkconnell
(14) asked of the witness. It was limited to this
(15) e-mail.

(16) MR. HANSON: Okay.

(17) BY MR. HANSON:

(18) Q Sir, you're -- you're aware that I have
(19) been trying to get someone to look at these issues
(20) for how long?

(21) MR. KIRKCONNELL: Objection, your Honor.

(22) The witness doesn't know how long he's been --

(23) MR. HANSON: Why are you answering for him?

(24) He can say he doesn't know.

(25) THE COURT: Objection is overruled.

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(1) Mr. Hanson, quit being argumentative.

(2) MR. HANSON: I'm being argumentative?

(3) THE COURT: Sir, answer the question, if
(4) you can.

(5) **A Yeah. Yeah, I'm aware vaguely that you've**
(6) **been battling various folks over things for several**
(7) **years, that's -- and that's about all I know.**

(8) BY MR. HANSON:

(9) Q (CQ) Are you aware of whether anyone with
(10) The Florida Bar or any Judge or any attorney has
(11) accused me of doing anything dishonest or in bad
(12) faith throughout all of that?

(13) MR. KIRKCONNELL: Objection. Scope.

(14) **A I don't know.**

(15) THE COURT: Objection. So, Dr. Cuillier,
(16) please don't answer a question when there's --

(17) THE WITNESS: Sorry.

(18) THE COURT: -- a pending objection.

(19) THE WITNESS: Sorry.

(20) THE COURT: The objection is sustained.

(21) It's outside of the scope.

(22) I've warned you several times, Mr. Hanson,
(23) to the limited scope of your redirect.

(24) And with that, this witness will be
(25) excused.

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(1) MR. HANSON: Okay. I just want to note
(2) that I have more questions.

(3) And I would certify the questions that I
(4) was not allowed to get answers on today.

(5) THE COURT: Thank you.

(6) Dr. Cuillier, you're free to go at this
(7) time.

(8) Who is your next witness, Mr. Hanson?

(9) MR. HANSON: I -- I suppose Mr. Hines is
(10) here, that will save us a bit of time.

(11) THE COURT: So, Mr. Hines is the -- he's
(12) here as the representative. There's also Jane
(13) Bambauer has been waiting in the waiting room.

(14) MR. HANSON: Yeah. I just -- I have Hines
(15) up. So, if it's up to me, I will just do Hines
(16) here.

(17) THE COURT: Go ahead.

(18) MR. KIRKCONNELL: Your Honor, there's only
(19) 20 minutes left. I'll keep it fast. But if
(20) he's not going to call Professor Bambauer, can
(21) we let her go?

(22) MR. HANSON: I am, I just --

(23) THE COURT: We do have -- you do have about
(24) 20 minutes. So, that's why I'm asking, do you
(25) want to call Bambauer, who has been waiting

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(1) since nine o'clock or would you like to proceed
(2) with Mr. Hines?

(3) MR. HANSON: You know, your Honor, if I
(4) only have 20 minutes, and I'm going to have to
(5) spend a few hundred dollars more to get their
(6) testimony at a future date, then I guess if
(7) they're going to produce Mr. Hines, it makes
(8) sense to do Ms. Bambauer then.

(9) THE COURT: Okay.

(10) MR. KIRKCONNELL: Your Honor --

(11) THE COURT: I will admit her from the
(12) waiting room.

(13) MR. KIRKCONNELL: Your Honor, I just wanted
(14) to put on the record that we -- we feel like 90
(15) minutes is more than sufficient time today. We
(16) do not --

(17) THE COURT: I'm sorry. Mr. Kirkconnell,
(18) I'm having trouble hearing you.

(19) MR. KIRKCONNELL: I beg your pardon, ma'am.
(20) Can you hear me?

(21) THE COURT: I can. Now I can, yes.

(22) MR. KIRKCONNELL: Okay. I apologize. I
(23) just wanted to say that we object to any
(24) continuance of this hearing, 90 minutes is more
(25) than enough time, and I just want to put that on

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(1) the record.

(2) Thank you.

(3) THE COURT: Okay. Professor Bambauer, I
(4) see that you're muted. If you would unmute
(5) yourself, please.

(6) I'm going to start by swearing you in. If
(7) you would raise your right hand.

(8) Do you swear or affirm the testimony you
(9) provide will be the truth, the whole truth, and
(10) nothing but the truth so help you God?

(11) THE WITNESS: Yes, I do.

(12) THE COURT: Thank you.

(13) Mr. Hanson.

(14) THEREUPON,

(15) PROFESSOR JANE BAMBAUER

(16) Was adduced as the witness herein and being first
(17) duly sworn on oath was questioned and stated as
(18) follows:

(19) DIRECT EXAMINATION

(20) BY MR. HANSON:

(21) Q Good morning. Can you state your full name
(22) for me please, ma'am?

(23) **A Jane Bambauer.**

(24) Q And who is your employer?

(25) **A The University of Florida.**

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(1) Q How long have you been employed with the
(2) University of Florida?

(3) A Since August of 2023.

(4) Q What positions have you held?

(5) A I have held the eminent scholar chair at
(6) the College of Journalism and Communications, and
(7) Professor of Law at the 11 College of Law. And now
(8) I am an associate dean for Innovation at the College
(9) of Law.

(10) MR. KIRKCONNELL: Your Honor, I'm going to
(11) just stipulate on behalf of University to Ms.
(12) Bambauer's C.V. If we can proceed to the
(13) questions at issue, that's what I would ask.

(14) MR. HANSON: Okay.

(15) BY MR. HANSON:

(16) Q So, Ms. Bambauer, your work, does that
(17) place you at a point where journalism and the law
(18) meet in some sense?

(19) A Yes. My specialty is in free speech, and
(20) information law.

(21) Q Does that include government
(22) accountability?

(23) A It can.

(24) Q Have you ever practiced law representing
(25) people seeking public records from agencies or

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(1) institutions?

(2) **A I have been involved in some public records**
(3) **cases. I'm not -- I hesitate because I'm not sure**
(4) **that I was representing clients, but -- but I have**
(5) **certainly worked on some cases.**

(6) Q In what role would that generally be?

(7) MR. KIRKCONNELL: Objection. Relevance.

(8) THE COURT: Overruled.

(9) **A I was a party seeking records in at least**
(10) **two cases, and I was an expert witness in a case.**

(11) BY MR. HANSON:

(12) Q Are those cases on your C.V.?

(13) **A I am not sure.**

(14) Q Can you give them to me real quick?

(15) **A One of them was Sander versus the -- I**
(16) **think it's State Bar of California, and one of them**
(17) **was ACLU of Arizona versus the Department of**
(18) **Homeland Security, and the third one was also**
(19) **Sander, but I don't remember the defendant.**

(20) Q When did you first become aware of me and
(21) my public records litigation?

(22) **A I'm not sure when I became aware of**
(23) **litigation. I mean, prior to -- I -- I -- I became**
(24) **aware of you, but I'm not sure about at what point I**
(25) **became aware of litigation specifically.**

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(1) Q Have you reviewed any materials in
(2) preparation for today?

(3) A I didn't review anything in preparation for
(4) today.

(5) Q Were you aware that your deposition was
(6) scheduled for back in early August?

(7) A No, I don't think so, at least I don't
(8) remember.

(9) Q Was your deposition ever scheduled in this
(10) case as far as you know?

(11) A As far as I know, no. I don't -- I don't
(12) recall being aware of a deposition date.

(13) Q So, I'm looking at this correspondence.
(14) Hopefully you can see it on page 86 of Mr.
(15) Kirkconnell's exhibit.

(16) Do you see what I'm referring to? It's a
(17) -- it's near the top of the page, 12:19 p.m., March
(18) 30th?

(19) A Yeah, I see it.

(20) Q Did you ever search your text messages for
(21) any communications with me?

(22) A Yes.

(23) Q Did anyone with IT or anyone other than
(24) University ever search your cell phone for any texts
(25) or messages relating to me or my cases?

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(1) **A Not my personal cell phone.**

(2) Q Did someone formally do a search of your
(3) work cell phone?

(4) **A I don't have a work cell phone.**

(5) Q Were you aware that the records request had
(6) requested searches of the cell phones?

(7) **A Yes.**

(8) Q Do you know why that didn't take place?

(9) **A It did take place.**

(10) Q Someone did a formal review of your cell
(11) phone?

(12) **A I'm sorry. I thought you asked about the**
(13) **search. There was -- I -- searched my cell phone?**

(14) Q Right. I'm asking if anyone in IT ever
(15) searched your cell phone for any texts or messages?

(16) **A No one in IT searched my personal cell**
(17) **phone.**

(18) Q Are you aware of any problems that IT ran
(19) into when they were searching your e-mails?

(20) **A No.**

(21) Q Does anyone ever tell you that there was a
(22) problem with searching your e-mails or -- or that
(23) for any reason nothing after March 9th was captured;
(24) were you aware of that?

(25) **A No.**

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(1) Q Did you ever have any e-mail communications
(2) with anyone about me, the Courts that I'm litigating
(3) with or the litigation itself at any time after
(4) March 12th of 2026?

(5) A I might have. It looks like this
(6) correspondence we're looking at is after March 12th,
(7) for example.

(8) Q Correspondence with me directly or -- or
(9) with the --

(10) A Oh, with you directly? I don't recall
(11) correspondence with you directly except for very
(12) recently, within the last week or so, two. And I
(13) should say, by correspondence, I mean, I received an
(14) e-mail.

(15) Q Other than correspondence with me, and
(16) correspondence with the records department, and
(17) Florida IT about the searches, did you ever have any
(18) e-mail communications with anyone relating to me or
(19) litigation I'm involved in?

(20) A As long as what -- as long as the records'
(21) department includes Amy Quillen, and, you know,
(22) members of the general counsel's office working on
(23) -- working on this matter right now, no, I have not
(24) -- I have not corresponded with anyone about you.

(25) Q Let me just make -- make sure that I'm

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(1) clear here.

(2) I said that that's something I understand,
(3) that you've had communication with me directly, I've
(4) sent you a couple of communications, I don't know if
(5) you've sent me any off of the top of my head.

(6) But other than communications between
(7) myself and yourself, and your communications with
(8) people in the general counsel's office records'
(9) department, and the tech department, just relating
(10) to the searches, would there be any other e-mail or
(11) any type of text communications relating to me or my
(12) cases that you've had?

(13) **A No. I -- I don't believe so, no.**

(14) Q Did you ever talk to Dr. Cuillier about me
(15) or my cases?

(16) **A I hesitate only because it's -- it's**
(17) **possible after -- after learning about this request,**
(18) **and performing a search that it may have come up in**
(19) **conversation, but I don't specifically remember, and**
(20) **-- and I -- I -- you know, if -- if it came up, it**
(21) **was only -- it would have only been to verify that**
(22) **-- that you had e-mailed both of us at some point.**

(23) Q Did you ever have any communication with
(24) anyone in media or journalism about me or my
(25) litigation?

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(1) **A No.**

(2) Q Verbal as well?

(3) **A Verbal as well.**

(4) Q (CQ) Do you know why the IT department --

(5) IT department wouldn't tell you about the

(6) malfunction with your e-mail search?

(7) MR. KIRKCONNELL: Objection. Calls for
(8) speculation.

(9) THE COURT: Sustained.

(10) MR. HANSON: It's a yes or no question.
(11) She either knows or she doesn't.

(12) THE COURT: It was sustained.

(13) Move on to your next question.

(14) MR. HANSON: Okay. But it's flat out
(15) wrong.

(16) THE COURT: I'm going to remind you too
(17) we're running out of time.

(18) BY MR. HANSON:

(19) Q (CQ) You would agree that if the search
(20) that IT did stopped at March 9th, that UF has failed
(21) to complete the search that my public records
(22) request required; right?

(23) MR. KIRKCONNELL: Objection. It calls for
(24) speculation. She's already answered she gave
(25) all of her responses. She has --

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(1) THE COURT: Sustained.

(2) MR. HANSON: I'm sorry?

(3) THE COURT: The objection was sustained.

(4) BY MR. HANSON:

(5) Q (CQ) Do you know whether the public records
(6) custodians in Florida have a duty to do a good faith
(7) search for records requested by citizens?

(8) MR. KIRKCONNELL: Objection to the extent
(9) it calls for a legal opinion.

(10) THE COURT: Sustained.

(11) BY MR. HANSON:

(12) Q (CQ) Do you have any opinion as to whether
(13) UF's search in response to my public records request
(14) was complete?

(15) MR. KIRKCONNELL: Objection. Calls for
(16) opinion testimony.

(17) THE COURT: Sustained.

(18) BY MR. HANSON:

(19) Q How often do you get public records
(20) requests, where you have to get involved with this
(21) process?

(22) **A I believe it has happened in -- maybe two**
(23) **times before over the last ten years.**

(24) Q When it has happened, do you get involved
(25) in any of the decision-making?

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(1) **A No, I follow instructions.**

(2) Q When UF gets other public records requests,
(3) do you ever get consulted or offer any input?

(4) **A No.**

(5) Q Did you ever have any communications with
(6) anyone with the First Amendment Foundation about me
(7) or my litigations?

(8) **A No.**

(9) Q Are you aware of how many pages were
(10) identified by University of Florida as part of my
(11) public records request?

(12) **A No.**

(13) Q If public institutions are able to -- well,
(14) let me ask it this way.

(15) When you have been involved in public
(16) records requests before, do the agencies or
(17) institutions generally give you a number of pages
(18) that are identified?

(19) **A I can't recall.**

(20) Q (CQ) The constitutional right under article
(21) one, section 24 is to ensure that citizens have
(22) access to the records of their government; right?

(23) MR. KIRKCONNELL: Objection. Calls for a
(24) legal opinion. This is also outside of the
(25) scope of the issue before the Court.

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(1) THE COURT: Sustained.

(2) BY MR. HANSON:

(3) Q (CQ) You would agree that if state
(4) institutions can identify records in response to a
(5) public records request, and decide that some aren't
(6) public records, and they can avoid disclosing how
(7) many records they found, and what records they
(8) found, that would make any constitutional right to
(9) access government records completely a losery;
(10) right, because the agency could just put these
(11) aside, and not tell you anything about it, and you
(12) would have no way of getting any?

(13) MR. KIRKCONNELL: I'm going to object. It
(14) calls for speculation. Counsel is testifying as
(15) well.

(16) THE COURT: Sustained.

(17) Mr. Hanson, I'll --

(18) MR. HANSON: You --

(19) THE COURT: I will remind you, please limit
(20) your questions to this witness regarding the
(21) response to the public records request.

(22) MR. HANSON: Yeah. I mean, all of this is
(23) about the -- the public records request, your
(24) Honor, as far as I can tell.

(25) THE COURT: You're asking her legal

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(1) opinions. She -- she is here as a witness for
(2) the University regarding the documents produced
(3) in response to a request to produce, the request
(4) for public records.

(5) MR. HANSON: So, are we supposed to just
(6) pretend --

(7) THE COURT: Again, we -- it's 10:30 now. I
(8) gave you an hour and a half. I'm happy to give
(9) a little bit of leeway so that we can finish
(10) today, but you need to limit your questions to
(11) the issues before the Court.

(12) MR. HANSON: But, your Honor, it doesn't
(13) need to --

(14) THE COURT: And specifically the issues that
(15) this witness has knowledge of that are related
(16) to the response to the public records request.

(17) MR. HANSON: And, your Honor, my position
(18) is that these are clearly related, and it's
(19) unreasonable to suggest I have to assume that
(20) she doesn't have any expert knowledge, that's
(21) relevant to the proceedings, and to -- to allow
(22) her to avoid testifying to simple questions that
(23) she would have an answer to limits my ability to
(24) prove my case, and -- and I don't understand
(25) what the prejudice is or -- or what the -- the

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(1) basis is other than that it allows her to avoid
(2) asking questions.

(3) THE COURT: I've already ruled, Mr. Hanson.

(4) MR. HANSON: Certify --

(5) THE COURT: Move on to your next question,
(6) please.

(7) MR. HANSON: Okay. I just want to make
(8) sure the record is clear. I'm certifying all of
(9) the -- the questions that I've asked that have
(10) had objections that were sustained.

(11) THE COURT: You have five more minutes with
(12) this witness.

(13) BY MR. HANSON:

(14) Q (CQ) In your professional career litigating
(15) cases or serving as an expert or writing briefs or
(16) even doing interviews, have you ever given any
(17) opinions on timeframes that are reasonable for
(18) public institutions to issue responses?

(19) MR. KIRKCONNELL: I'm going to object as to
(20) relevance and scope.

(21) THE COURT: Sustained.

(22) BY MR. HANSON:

(23) Q Have you ever made any public comments
(24) about abuses of the public records system?

(25) **A In some of my academic writing and**

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(1) **scholarship I have talked about abusive -- abuser**
(2) **evasion of public records.**

(3) Q (CQ) If there were abuses in the public
(4) records production process at the University of
(5) Florida relating to e-mails that you may have been
(6) sent or been copied on or sent yourself, would you
(7) have a responsibility or an ethical duty to step in
(8) and -- and correct the problem within the University
(9) so that people's constitutional rights are
(10) protected?

(11) MR. KIRKCONNELL: Objection. That calls
(12) for speculation, and also an opinion.

(13) THE COURT: Sustained.

(14) MR. HANSON: Okay. Again, certifying all
(15) of these for the record.

(16) BY MR. HANSON:

(17) Q Are you aware of how the University
(18) responded ultimately after my follow up?

(19) **A I'm not sure which follow up, but I think**
(20) **the answer is going to be no anyways.**

(21) Q (CQ) Were you asked to get involved in any
(22) searches after your office had declared the search
(23) complete and resolved?

(24) MR. KIRKCONNELL: Objection. That's a
(25) mischaracterization of the facts before the

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(1) Court. It's not Ms. Bambauer's office that
(2) responded to the public records request.

(3) THE COURT: Sustained.

(4) MR. HANSON: I will certify it for the
(5) record.

(6) BY MR. HANSON:

(7) Q Did you ever review the public records
(8) request that I made?

(9) **A No, I don't believe I did.**

(10) Q How would you have conducted searches if
(11) you didn't review the public records request?

(12) **A The office of -- the office that handles**
(13) **public records requests gave me instructions for**
(14) **search terms, and dates, and I followed the**
(15) **instructions.**

(16) Q Do you know whether any attachments to any
(17) e-mails might exist where the attachment referenced
(18) me or anything covered by my search terms?

(19) **A I don't know. I don't recall such an**
(20) **attachment, but that doesn't necessarily mean it**
(21) **wasn't there. I -- I don't remember seeing it.**

(22) Q Are you aware of anything that would
(23) suggest that I didn't want attachments?

(24) **A No.**

(25) Q Did you compile more records after the

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(1) initial May 4th, 2026 response from the University
(2) where they declared the search complete?

(3) **A Sorry. Can you ask that question again?**

(4) **Did I do what after May 4th?**

(5) Q Did you compile any additional responsive
(6) records related to my request after the University
(7) declared the response complete when they produced my
(8) own correspondence back to me on May 4th?

(9) **A No. My -- my memory is I -- after that**
(10) **point I confirmed that I had no -- no records other**
(11) **than the ones I had already disclosed.**

(12) Q So, did you do more searching?

(13) **A I think -- I'm looking at this May 5th**
(14) **correspondence. My understanding is that after May**
(15) **5th, when I double checked my text messages, after**
(16) **that point I don't believe I needed to run any more**
(17) **searches because I had already done the exhaustive**
(18) **-- I didn't think there was anything left to search.**

(19) Q I'm going to show you --

(20) THE WITNESS: Also apologies to the Court.

(21) I'm supposed to teach at 10:45, just to make you
(22) aware.

(23) THE COURT: Yes, ma'am. That -- that's
(24) fine. I actually already with Mr. Hanson
(25) advised he had five minutes, six minutes ago.

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(1) So, you have one last question.

(2) BY MR. HANSON:

(3) Q Do you know why there was an extended
(4) period of legal review after the University started
(5) compiling records on March 30th of 2026?

(6) **A I don't know why.**

(7) Q If there is documents --

(8) THE COURT: That's the last -- that was the
(9) last question, Mr. Hanson.

(10) Mr. Kirkconnell, do you have any questions
(11) of the witness?

(12) MR. HANSON: Again, I will for the record
(13) state I have more questions, and I object, and I
(14) think it's violating my constitutional rights
(15) not to give me time on this.

(16) MR. KIRKCONNELL: Your Honor, I have no
(17) questions for the witness.

(18) Thank you.

(19) THE COURT: Okay. The witness may be
(20) excused.

(21) You're free to go.

(22) Thank you.

(23) MR. HANSON: Thank you, ma'am.

(24) THE COURT: Okay. Mr. Hanson, did you wish
(25) to question Mr. Hines at this time?

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(1) MR. HANSON: Sure.

(2) THE COURT: All right. Mr. Kirkconnell and
(3) Mr. Hines, if I -- if we go another half hour,
(4) are you both available to continue for half an
(5) hour?

(6) MR. HINES: Can I get a two-minute pit
(7) stop, your Honor.

(8) THE COURT: I'm sorry?

(9) MR. HINES: Can I get a two-minute pit
(10) stop, your Honor?

(11) THE COURT: Yes. We will take a -- we will
(12) take a two-minute recess.

(13) MR. HINES: Thank you, your Honor.

(14) (Thereupon, a recess was had at 10:39 a.m.;
(15) whereupon, we reconvened at 10:41 a.m.)

(16) THE COURT: Okay. We're back on the record
(17) after that two-minute recess.

(18) We do have -- I am going to allow an
(19) additional half an hour so that we can finish
(20) this up today.

(21) Mr. Hanson, I would just remind you to
(22) limit your questions to the issues before the
(23) Court, and, so, we can use the time wisely.

(24) Mr. Hines, I'm going to swear you in.
(25) If you would raise your right hand.

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(1) Do you swear or affirm the testimony you
(2) provide will be the truth, the whole truth, and
(3) nothing but the truth so help you God?

(4) THE WITNESS: Yes, your Honor.

(5) THE COURT: Thank you.

(6) Mr. Hanson, you may proceed.

(7) MR. HANSON: Thank you, your Honor.

(8) I do just want to note that I would like to
(9) testify as well, and I don't know that an
(10) additional 30 minutes is going to do it with the
(11) arguments as well, but I'm happy to continue
(12) with -- with that being on the record.

(13) THEREUPON,

(14) JOHN HINES

(15) Was adduced as the witness herein and being first
(16) duly sworn on oath was questioned and stated as
(17) follows:

(18) DIRECT EXAMINATION

(19) BY MR. HANSON:

(20) Q Mr. Hines, thank you for being here today,
(21) sir.

(22) Can you please state your name and
(23) occupation?

(24) **A John Kevin Hines, director of public**
(25) **records at the University of Florida.**

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(1) Q And what is your experience in -- in this
(2) position? How -- how long have you been in that
(3) position?

(4) A Over ten years.

(5) Q Do you have any training or education in
(6) public records compliance?

(7) A No.

(8) Q What is your experience then before you
(9) took over as records custodian?

(10) A I worked in the University relations office
(11) handling media affairs.

(12) Q Is your position still something that
(13) crosses over between media affairs and records
(14) compliance?

(15) A No.

(16) Q Do you have -- ever have any meetings or
(17) provide updates to anyone in University relations or
(18) media?

(19) A Yes.

(20) Q How often do you provide updates to
(21) University relations or media?

(22) A When requested of me from media entities,
(23) the strategic communications offices, they're known
(24) about that request.

(25) Q (CQ) And who are the people that would make

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(1) those requests? What -- what job titles and names,
(2) please?

(3) MR. KIRKCONNELL: Your Honor, I'm going to
(4) object. We're already off track here. We have
(5) a half hour left. We apparently have two
(6) witnesses, and this is not what's at issue in
(7) this case, in this hearing.

(8) THE COURT: Response, Mr. Hanson, to the
(9) relevance.

(10) MR. HANSON: I'm trying to figure out where
(11) hundreds of pages came from and went, and I
(12) don't know exactly how to do that. I'm trying
(13) to figure out what -- what they did with them.
(14) The fact that they won't tell -- tell me, and
(15) that the Court is not just telling them to
(16) reveal that, I need to be able to explore if --
(17) if the Court wants me to prove what the records
(18) are they're hiding, I can't just guess.

(19) MR. KIRKCONNELL: Your Honor --

(20) THE COURT: Objection sustained as to the
(21) specific question that was objected to.

(22) MR. HANSON: What was the question that was
(23) objected to, your Honor?

(24) THE COURT: Can the court reporter read
(25) back the question?

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(1) (Thereupon, the last question referred to
(2) was read back by the court stenographer.)

(3) MR. HANSON: So, I can't figure out who he
(4) talks to about media relations?

(5) THE COURT: No, you can't. I already
(6) sustained the objection.

(7) MR. HANSON: Okay. Certify that for the
(8) record.

(9) BY MR. HANSON:

(10) Q Have you -- let's start from the beginning,
(11) sir.

(12) When did you first become aware of my
(13) public records request?

(14) **A You had put in a public records request to**
(15) **our public records mailbox on March 26th, 2026.**

(16) Q And what time did you get that?

(17) **A I -- I don't have the e-mail in front of**
(18) **me, what -- exactly what time I received it.**

(19) Q Had you ever heard my name before May 4th
(20) of -- I'm sorry.

(21) Had you ever heard my name before March
(22) 26th of 2026?

(23) **A No.**

(24) Q How many people does the records department
(25) employ?

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(1) **A Our public records request team contains**
(2) **between eight to ten people.**

(3) Q Do only certain of those do intake? When a
(4) new public record comes in, how -- how does that
(5) work? Is it any one can grab it, and start to
(6) process it or is that something that's assigned to
(7) people?

(8) **A When a public records request comes in I**
(9) **handle the intake.**

(10) Q You personally handle the intake of all
(11) public records requests that come into the
(12) University of Florida?

(13) **A Yes.**

(14) Q What's the normal procedure after you --
(15) you get a public records request?

(16) **A When a public request is received, it can**
(17) **come in different forms. It can come via e-mail, it**
(18) **can come via the public records request portal, it**
(19) **can be done over the phone, it can be done over fax,**
(20) **it could be done as a mailing, it just depends which**
(21) **type of request comes in how it's handled.**

(22) Q Why does it change depending on how you get
(23) it?

(24) **A Requests -- people can make public records**
(25) **requests in all different forms.**

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(1) Q Right. I'm just wondering why the process
(2) is different for how you handle them, depending upon
(3) how they're requested?

(4) A Each request is different. Some could come
(5) via the public records portal, some could come over
(6) the phone, some could come over e-mail, et cetera.

(7) Q In what -- in what way do you treat them
(8) different based upon the different ways they can
(9) come in?

(10) A Requests aren't treated differently.

(11) Q So, what's the first thing that happens to
(12) any public records request that comes in?

(13) A If a public records request has come in via
(14) the public records request portal, the individual
(15) requester has received an acknowledgement and a
(16) timestamp of when the request came into the system.
(17) If it comes in other forms, then the request has to
(18) be manually entered into the public records request
(19) portal.

(20) Q So, when one comes through the portal, like
(21) mine did, what is the first thing that you do with
(22) it?

(23) A Your request did not come through the
(24) portal.

(25) Q How did it come in?

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(1) **A Your request came by the public records**
(2) **request mailbox.**

(3) Q What's the first thing that you do when you
(4) get a public records request via that mailbox?

(5) **A It is then entered into the public records**
(6) **request portal, it is assigned a reference number,**
(7) **and the individual receives an acknowledgement and**
(8) **timestamp from the system that it has been received.**

(9) Q How often do you involve legal counsel
(10) within a few minutes of getting a public records
(11) request in?

(12) **A Each time a request comes into the system,**
(13) **it is directed to our public records request team.**

(14) Q And who is on the public records request
(15) team?

(16) **A Among others, it would include attorneys**
(17) **from the public record -- from the general counsel's**
(18) **office, as well as our administrative assistant.**

(19) Q How often is it that you have to request a
(20) meeting immediately after getting a public records
(21) request in?

(22) **A We have standing meetings three days a week**
(23) **to address any public records requests.**

(24) Q What -- what days do you have those
(25) meetings?

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(1) **A Normally standing meetings are held Monday,**
(2) **Wednesday, and Friday beginning at ten a.m.**

(3) Q When you receive a -- a public records
(4) request, do you always notify the legal team right
(5) away that it's something you need to talk about?

(6) **A It depends on the situation. Yeah. Every**
(7) **time a request comes into the system, the staff is**
(8) **made aware of the request.**

(9) Q I understand the staff, but that's not
(10) necessarily to attorneys in the general counsel's
(11) office; right?

(12) **A Our staff consists of the attorneys and**
(13) **staff for public records.**

(14) Q But that's the eight to ten people; right?

(15) **A There are eight to ten people that are**
(16) **members of the public records request team.**

(17) Q How many of them are attorneys?

(18) **A Six.**

(19) Q (CQ) Is it about half and half between what
(20) goes to attorneys and what goes to non-attorneys for
(21) preparing the response?

(22) MR. KIRKCONNELL: Your Honor, I'm going to
(23) object. If he has a question about the specific
(24) request, then he can ask it, but asking
(25) generally, I'm not sure what we're getting at.

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(1) So, my objection is to relevance, ma'am.

(2) THE COURT: Response?

(3) MR. HANSON: Your Honor, I think all of
(4) this is critically relevant. I feel a bit like
(5) I'm in a place where no matter what I say it
(6) will be shut down, but this is all important
(7) stuff for me to understand why my situation was
(8) handled this way, why I'm still in the dark
(9) about hundreds of pages of records. I need some
(10) background because I'm not getting it any other
(11) way.

(12) THE COURT: The objection is sustained.

(13) MR. HANSON: I'll certify that for the
(14) record as well.

(15) THE COURT: Okay. You have -- you have
(16) four minutes left, Mr. Hanson.

(17) MR. HANSON: Seriously, your Honor?

(18) THE COURT: Yes. I -- I told you -- I told
(19) you we had half an hour, I'm going half an hour
(20) beyond the time.

(21) I have other hearings.

(22) MR. HANSON: I get it, your Honor. But you
(23) knew this wasn't enough time, and you're
(24) skipping a big part of the process, and you're
(25) helping the University of Florida, it's blatant

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(1) and disgusting. And you should report me. If
(2) you think I did something wrong, report me for
(3) saying that about you.

(4) THE COURT: You have four minutes.

(5) MR. HANSON: I looked forward to litigating
(6) this --

(7) THE COURT: You have four minutes -- you
(8) have four minutes to ask this witness questions,
(9) you can use it bashing me or you can use it
(10) asking the witness questions.

(11) BY MR. HANSON:

(12) Q Sir, there were 300 -- strike that.

(13) On -- so, this page 76 here, it was four
(14) minutes after you received it you sent an e-mail to
(15) Amy Quillen and James Kirkconnell, can we discuss
(16) this one at our meeting on Monday.

(17) What made it clear after four minutes that
(18) that was one that you wanted to specifically discuss
(19) at a meeting?

(20) **A Reading through the language, we needed to**
(21) **discuss it at our meeting.**

(22) Q In just four minutes after it came in that
(23) was enough to read it, and know that you needed to
(24) send the e-mail?

(25) **A Yes.**

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(1) Q All right. So, as of April 3rd the
(2) University had identified 340 responsive or
(3) potentially responsive records; is that right?

(4) MR. KIRKCONNELL: Your Honor, if counsel
(5) has a record sustaining or that's part of this
(6) question, I would ask him to present it to the
(7) -- the witness.

(8) Thank you.

(9) THE COURT: I'm sorry. Mr. Kirkconnell,
(10) I'm having trouble hearing you.

(11) MR. KIRKCONNELL: I apologize, ma'am. I'm
(12) probably mumbling.

(13) I just wanted to say, if there's a record
(14) that goes along with this line of questioning,
(15) that counsel present it to the witness while he
(16) asks the questions, that's all.

(17) THE COURT: It looks like Mr. Hanson is
(18) scrolling through some records.

(19) I'll -- I'll give you a moment to pull that
(20) up.

(21) MR. HANSON: Thank you.

(22) BY MR. HANSON:

(23) Q So, if you look at page 90 here of Mr.
(24) Kirkconnell's exhibit, there's an e-mail from
(25) Barbara Wood to you on April -- I'm sorry, on March

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(1) 30th. So, the same day that you started the search
(2) process there's 340 pages of records.

(3) What happened to those 340 pages after this
(4) March 30th e-mail?

(5) **A I don't know.**

(6) Q Do you see how that's a problem, sir?

(7) **A The attorneys handle the legal review of**
(8) **public records request, I'm not an attorney.**

(9) Q Were the records that were set aside, the
(10) 340 pages as of March 30th, did they relate to me
(11) and/or my search terms?

(12) **A I don't handle the legal review or**
(13) **requests.**

(14) Q I understand that, sir. But do you know
(15) whether they related to me? And I appreciate your
(16) -- your candor here, and I understand that it's a
(17) scary position to be in. But if you know, I --
(18) you're under oath, sir, and I -- I need someone to
(19) show some candor. So, I would be grateful if -- if
(20) you would answer with anything you know.

(21) Were there documents that related to me or
(22) the search terms that I requested in those 340
(23) pages?

(24) **A I did not handle the legal review of**
(25) **those --**

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(1) Q That doesn't answer my question, sir.

(2) Did any of those 340 pages to the best of
(3) your knowledge relate to anything that I requested
(4) in my public records request?

(5) **A I don't know. I did not read the 340**
(6) **pages.**

(7) Q Is it unusual that there's simply no trace
(8) of what happened to 340 pages of records when UF is
(9) responding to a public records request?

(10) **A I don't know. I -- I did not handle any of**
(11) **the review, legal review for this request.**

(12) Q I understand, sir. And -- and I can tell
(13) you're in a difficult position.

(14) But am -- I'm not asking you about the
(15) identity of the records at this point. I'm asking
(16) whether it is normal during this process of
(17) responding to a public records request that 340
(18) pages are identified the first day that you start
(19) looking, they're never sent to the requester, and
(20) there's simply no record of what happened to them in
(21) the metadata that -- that I've received? Is that a
(22) normal problem that comes up when UF is responding
(23) to records requests?

(24) **A Every public records request is different.**

(25) Q Is it normal that you lose track of 340

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(1) pages, sir?

(2) **A I didn't handle the legal review for the**
(3) **pages you've referenced.**

(4) Q So, you're on that e-mail here that I'm
(5) looking at from March 30th. Are there any records
(6) related to any legal review that happened?

(7) **A I'm not an attorney. I did not handle any**
(8) **legal review related to this request.**

(9) MR. KIRKCONNELL: So, your Honor --

(10) BY MR. HANSON:

(11) Q Now --

(12) MR. KIRKCONNELL: -- if I could just come
(13) in here for a second.

(14) MR. HANSON: No, sir. No, sir. I'm asking
(15) questions. If you have an objection --

(16) THE COURT: He can object to your question.
(17) You can't tell counsel they can't speak, Mr.
(18) Hanson.

(19) MR. HANSON: He can object, but he can't
(20) just, may I interrupt.

(21) THE COURT: Mr. Kirkconnell?

(22) MR. KIRKCONNELL: Thank you, ma'am.

(23) There's a high probability I won't get to
(24) clarify with questions to Mr. Hines today
(25) because of the time limitations. I -- I think

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(1) we can cut to the chase, if Mr. Hanson just asks
(2) Mr. Hines if these records still exist, because
(3) I think that that is leading to some confusion
(4) in the colloquy.

(5) THE COURT: So, Mr. Hanson, I -- I did give
(6) you four minutes. I -- I understand there's a
(7) lot of questions that you would like to ask.
(8) I'm going to give you two more minutes to -- to
(9) finish up.

(10) MR. HANSON: Well, we're -- we're --

(11) BY MR. HANSON:

(12) Q Sir, is it possible that those 340 pages of
(13) responsive records were destroyed?

(14) A No.

(15) Q How would I go about getting them, sir?

(16) A Please clarify the question.

(17) Q Haw?

(18) A Please clarify the question.

(19) Q So, that's part of what I -- I requested,
(20) it was the first thing that UF identified, they
(21) haven't told me what it is even, and that's a
(22) problem. I -- I need to get those records. How
(23) would I get those 360 pages -- I'm sorry, 340 pages?

(24) A There was a production that was made on May
(25) 4th that you're asking about, I believe.

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(1) Q Well, no, sir, that was 53 pages of my own
(2) communications with the University of Florida, and
(3) they didn't even mention these 340 pages.

(4) A I did not go over the legal review for this
(5) request.

(6) Q I understand, sir. But -- and I think your
(7) affidavit makes more sense now because -- how many
(8) total pages did University of Florida identify
(9) across all searches related to my public records
(10) request?

(11) A I don't know the answer to that.

(12) Q Sir, you're the records custodian; correct?

(13) A Yes, sir.

(14) Q And there's been active requests and follow
(15) ups in litigation really ever since this March 30th
(16) identification of these 340 pages. Are there any
(17) avenues that you're aware of to figure out what
(18) happened to these records?

(19) A What was the question?

(20) Q Is there any -- if you after this
(21) deposition -- or, I'm sorry, after this hearing, if
(22) you were told to go track down these 340 pages that
(23) were identified back on March 30th, how would you go
(24) about doing that?

(25) A I would go through the U-Drive that we have

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(1) **that -- which, you know, contains materials related**
(2) **to public records requests.**

(3) Q Okay.

(4) MR. HANSON: But I'm asking that the Court
(5) immediately put in an order that at a minimum
(6) those are sent for an in-camera inspection, if
(7) not just produced because they -- they've waived
(8) any right to argue exemptions now because they
(9) responded on May 4th stating that there weren't
(10) any exemptions.

(11) They further entrenched themselves in that
(12) position when they filed their response to the
(13) order to show cause saying there were no
(14) exemptions. And then they filed these 479 pages
(15) suggesting there are exemptions.

(16) So, I would ask that the Court issue that
(17) order immediately.

(18) BY MR. HANSON:

(19) Q Sir, there's a couple of other large
(20) packages of --

(21) MR. KIRKCONNELL: May I respond, your
(22) Honor? May I respond to that?

(23) Maybe it's not appropriate right now, your
(24) Honor. I will wait. I will wait my turn.

(25) THE COURT: Yes.

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(1) Last question.

(2) MR. HANSON: I just need a second to find a
(3) document here.

(4) BY MR. HANSON:

(5) Q On April 24th, sir, there was 621 pages
(6) that were identified, what happened to those 621
(7) pages?

(8) MR. KIRKCONNELL: Could I ask counsel to
(9) provide the witness with the record he's
(10) referring to?

(11) MR. HANSON: Yes. It's just taking me a
(12) second here, but I -- I do have it.

(13) MR. KIRKCONNELL: I think it's 157.

(14) MR. HANSON: Thank you. I appreciate that.

(15) MR. KIRKCONNELL: That's Exhibit Z, as in
(16) zebra.

(17) MR. HANSON: Thank you, sir.

(18) BY MR. HANSON:

(19) Q At the bottom of page 157, it says, in
(20) addition to the 621 pages from UFIT on 4/24/26, she
(21) was in receipt of an additional 88 pages.

(22) Can you tell me anything about the identity
(23) of the 621 page stack or the 88 page stack or
(24) anything about what happened to them?

(25) **A Sure. The request that we're discussing**

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(1) **today is W018463, the 621 pages resulted from an IT**
(2) **search conducted for a different request, W018643.**

(3) Q (CQ) Is there any response that's been done
(4) for W019186 dash 071326 that was sent on July 13th?

(5) A Is there an exhibit? I -- I don't know the
(6) reference numbers off of the top of my head.

(7) Q I'm sorry?

(8) A I don't know the reference numbers off of
(9) the top of my head. Is there a --

(10) Q Oh, I'm sure. It was sent on July 13th.
(11) It's going to take me a second, but I know that it's
(12) in the packet here.

(13) MR. KIRKCONNELL: And, again, I object to
(14) relevance, your Honor. We're not talking about
(15) that public records request.

(16) THE COURT: Sustained.

(17) MR. HANSON: Your Honor, it's -- it's part
(18) of the same ongoing efforts to avoid compliance
(19) with public records laws.

(20) THE COURT: So, I don't see the relevance
(21) of a July 13th public records request.

(22) MR. HANSON: When they --

(23) THE COURT: We're here on a verified
(24) petition filed on June 4th, for a specific
(25) public records request. So, since you're making

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(1) other public records requests, we're not here
(2) today on those.

(3) MR. HANSON: Okay. So, the defendants are
(4) grossly noncompliant. There's 340 pages that --

(5) THE COURT: Mr. Hanson, do you have another
(6) question of this witness?

(7) MR. HANSON: Yeah. I've got several more
(8) questions.

(9) THE COURT: Okay. You're out of time. So,
(10) ask one last question.

(11) BY MR. HANSON:

(12) Q Do you know why Ms. Quillen, Attorney
(13) Quillen would have on May 7th of 2026 requested that
(14) that 88 page file be sent to her separately?

(15) MR. KIRKCONNELL: Your Honor, may I ask
(16) counsel to point Mr. Hines to the record that
(17) he's talking about?

(18) MR. HANSON: Sure.

(19) **A Ms. Quillen reached out to one of the staff**
(20) **members who handled the IT search, and copied other**
(21) **members of our team on that message, is that what**
(22) **you're asking?**

(23) BY MR. HANSON:

(24) Q I think so. Mr. Quiros?

(25) **A Yes.**

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(1) Q Well, I don't have it in front of me right
(2) now. If you have the page number, great. If not,
(3) it sounds like you know what I'm talking about, sir.

(4) Do you have any idea why Ms. Quillen would
(5) have those pages sent to her separately?

(6) **A I don't -- I don't know. It looks like I**
(7) **was copied on the messages, though.**

(8) Q Any idea what happened to those records?

(9) MR. KIRKCONNELL: Objection.

(10) You had one more question.

(11) THE COURT: I'm going to allow that one.

(12) MR. KIRKCONNELL: Yes, ma'am.

(13) THE COURT: Go ahead.

(14) **A When an individual reaches out to the IT**
(15) **staff, and they respond back, the message -- the**
(16) **messages would come back to Barbara Wood, myself,**
(17) **and our team. Any materials that would come from IT**
(18) **would be, you know, put on the U-Drive.**

(19) BY MR. HANSON:

(20) Q So, these 88 pages are somewhere on the
(21) U-Drive?

(22) **A Yes.**

(23) Q Is there a reason why no one has identified
(24) these 88 pages, the identity of these documents or
(25) the identity of the 340 pages of documents?

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(1) **A I didn't handle the legal review, I --**

(2) Q Do you sometimes handle the legal review
(3) part?

(4) **A No.**

(5) Q When there's a legal review process, are
(6) records compiled of that?

(7) **A Repeat the question.**

(8) Q When there's that legal review process that
(9) you mentioned, are records created from that or is
(10) it all done verbally, where there's no paper trail
(11) or information about what happened?

(12) **A Records are not created.**

(13) Q Is there a reason?

(14) **A It's the law, a record is not to be**
(15) **created.**

(16) Q So, when -- when the attorneys are
(17) communicating back and forth or making a note of why
(18) -- of what they're doing with it, that just doesn't
(19) happen? They just make a decision, and do something
(20) with it without documenting it?

(21) MR. KIRKCONNELL: I'm going to -- your
(22) Honor, I'm going to object. The initial
(23) question, line of questioning is, is there a
(24) record created when a lawyer does a legal
(25) review? This is a separate question about

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(1) whether records are created when attorneys ask
(2) each other questions. I just want it to be
(3) clear for the record, those are different
(4) inquiries, I think.

(5) BY MR. HANSON:

(6) Q Is it always just one attorney that does
(7) the legal review?

(8) **A No.**

(9) Q Would you have access to any records that
(10) may have been created in relation to a legal review
(11) related to anything in my case?

(12) **A No.**

(13) Q Only lawyers have access to it?

(14) **A Can you clarify the question?**

(15) Q So, I'm just trying to figure out how I can
(16) get them, and how I can figure out why there was no
(17) determination on what they are or what was happening
(18) to them.

(19) **A The attorneys handle all of the legal**
(20) **review for public records requests.**

(21) Q And keep their work on it separately from
(22) what you can see?

(23) **A Yes, I -- I don't see everything attorneys**
(24) **do.**

(25) Q Have you ever filed 400 plus pages of

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(1) records in response to a public records --

(2) THE COURT: Mr. Hanson, you're out of time.

(3) So, you've asked way -- way more questions
(4) than the time allowed for.

(5) MR. HANSON: I --

(6) THE COURT: Mr. Kirkconnell, you have an
(7) opportunity now to cross examine Mr. Hines.

(8) MR. HANSON: Judge, I wasn't done with the
(9) question. It was an important one, but --

(10) CROSS EXAMINATION

(11) BY MR. KIRKCONNELL:

(12) Q Mr. Hines, did you -- when you did the
(13) records search for this request, did you take the
(14) search terms directly from the request itself?

(15) MR. HANSON: I have to object -- object.
(16) It assumes facts not in evidence, and it's an
(17) improper predicate. No one said Mr. Hines did
(18) the search.

(19) THE COURT: Sustained.

(20) BY MR. KIRKCONNELL:

(21) Q Mr. Hines, after you received this public
(22) records request, and logged it in, what did you do?

(23) **A I sent an e-mail to our staff indicating**
(24) **that this is a records request that we should talk**
(25) **about.**

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(1) Q And what did you do after that?

(2) A After that, the request -- after our
(3) meeting was held I sent the search parameters to the
(4) IT department, and I reached out to the two faculty
(5) members that were named in the public records
(6) request.

(7) MR. KIRKCONNELL: Your Honor, may I share
(8) my screen with the witness?

(9) THE COURT: You may.

(10) MR. KIRKCONNELL: Mr. Hanson, can you stop
(11) sharing your screen, please?

(12) MR. HANSON: Oh, yes.

(13) Good?

(14) MR. KIRKCONNELL: Yes.

(15) Thank you.

(16) BY MR. KIRKCONNELL:

(17) Q Mr. Hines, can you see what I've -- what
(18) I've labeled as Exhibit F?

(19) A Yes, sir.

(20) Q Is -- is this your exchange with Dr.
(21) Cuillier requesting documents?

(22) A Yes.

(23) MR. HANSON: I'm sorry. Can you tell me
(24) what the page is please on it?

(25) MR. KIRKCONNELL: Yeah. It's page 78 of

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(1) the PDF.

(2) MR. HANSON: Thank you.

(3) BY MR. KIRKCONNELL:

(4) Q And moving now to page 86.

(5) Mr. Hines, is this your exchange with Jane
(6) Bambauer requesting records from her?

(7) **A Yes.**

(8) Q With regard to UFIT, what were your steps
(9) with regard to this request?

(10) **A I put together the parameters from the**
(11) **public records request, and then sent them over to**
(12) **IT for handling.**

(13) Q Okay. And where did you get those search
(14) parameters from?

(15) **A The search parameters came directly from**
(16) **the public records request.**

(17) Q Why do you do it that way?

(18) **A When a requester makes an ask for**
(19) **information, we want to be as complete as possible,**
(20) **and in this case we took the parameters that were**
(21) **provided, and used them to run the search.**

(22) Q Going to direct you to what's been labeled
(23) Exhibit N from the University. You may have already
(24) talked about this. It's on page 109.

(25) **A Yes.**

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(1) Q What does this e-mail indicate?

(2) **A This indicates --**

(3) MR. HANSON: I'm sorry. Mr. Kirkconnell,
(4) I've got my volume all of the -- all of the way
(5) up, and I'm still having trouble hearing you.

(6) MR. KIRKCONNELL: It must be my microphone.
(7) I apologize to everybody involved. I'll try to
(8) speak more loudly. I'm not -- I'm a soft spoken
(9) person any way, but I will try to speak up.

(10) THE COURT: Maybe if you lean in towards
(11) your computer, that -- that sometimes helps as
(12) well.

(13) MR. KIRKCONNELL: We will have to have a
(14) closer look at me, and I apologize for that too.

(15) BY MR. KIRKCONNELL:

(16) Q Mr. Hines, can you tell us what this e-mail
(17) is?

(18) **A It --**

(19) MR. HANSON: I'll object to the extent it
(20) would require speculation because he didn't
(21) write it.

(22) But, sorry, please answer.

(23) **A The bottom e-mail indicates that IT had an**
(24) **indexing issue on the search that was conducted, and**
(25) **then the top e-mail indicates that IT had rerun the**

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(1) **search, and provided additional pages responsive.**

(2) BY MR. KIRKCONNELL:

(3) Q So, did that rerun, did that address the
(4) issues that had come up with the search?

(5) **A Yes.**

(6) MR. HANSON: I'm just going to object. It
(7) requires speculation, assumes not -- facts not
(8) in evidence, improper predicate, and the witness
(9) doesn't have the training or experience to
(10) answer the question.

(11) THE COURT: I'll sustain the objection, Mr.
(12) Kirkconnell. You can attempt to lay a
(13) predicate.

(14) MR. KIRKCONNELL: Sure.

(15) BY MR. KIRKCONNELL:

(16) Q So, Mr. Hines, can you explain what
(17) happened when the search was run for Ms. Bambauer's
(18) e-mails?

(19) MR. HANSON: I have the same objections.

(20) MR. KIRKCONNELL: Your Honor, he's the
(21) director, he coordinates the search. I believe
(22) he can answer that.

(23) THE COURT: Overruled.

(24) **A The e-mail from the IT professional**
(25) **indicated, I've looked into the original search, and**

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(1) it appears that our search tool stalled before
(2) completing the search of Professor Bambauer's
(3) mailbox. After March 9th, 2026, no further e-mails
(4) were identified in her mailbox, whereas, David
(5) Cuillier's mailbox was run through the entire
(6) requested date range. This is likely an indexing
(7) error. When locating this message, the tool also
(8) identified 17 other messages that matched the
(9) criteria, and should have been included previously.
(10) I have included those in PDF format as well.

(11) BY MR. KIRKCONNELL:

(12) Q As the director of the public --

(13) MR. HANSON: I'm sorry. Can you tell me
(14) what page that's on?

(15) MR. KIRKCONNELL: It's on page 109.

(16) BY MR. KIRKCONNELL:

(17) Q Mr. Hines, as director of the public
(18) records department, what did you understand that --
(19) that -- that search conducted by IT to have
(20) accomplished?

(21) MR. HANSON: I object to the extent it
(22) requires hearsay, speculation, assumes facts not
(23) in evidence, and the same, not the training
(24) expertise you're required answer.

(25) MR. KIRKCONNELL: If I may respond, your

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(1) Honor.

(2) THE COURT: Overruled.

(3) MR. KIRKCONNELL: Oh, no need.

(4) BY MR. KIRKCONNELL:

(5) Q You can answer, Mr. Hines. What did you
(6) understand that e-mail to have accomplished?

(7) **A The e-mail accomplished that the search was**
(8) **now done correctly with the additional pages.**

(9) Q Okay. I'm going to ask you to turn to
(10) what's been identified as Exhibit DD. This is on
(11) page 175.

(12) Can you tell us what this e-mail
(13) represents?

(14) **A Which e-mail?**

(15) Q The part where you are copied on Thursday,
(16) May 7th at 9:16 a.m. from Ms. Quillen?

(17) **A Okay.**

(18) MR. HANSON: Object. It requires
(19) speculation, hearsay, facts not in evidence,
(20) predicate, and lack of proper training.

(21) MR. KIRKCONNELL: May I respond, your
(22) Honor?

(23) THE COURT: You may.

(24) MR. KIRKCONNELL: First of all, with this
(25) lack of training, Mr. Hines has been doing this

[Page 118]

(1) for ten years. Okay. So, we can dismiss that.

(2) Secondly, what's at issue here is

(3) University's reasonable response in good faith

(4) to this request. He's the coordinator. So,

(5) when he gets e-mails from his team, that impacts

(6) directly on how he understands this search to

(7) have been conducted, whether it was reasonable,

(8) that's what is at issue. I'm not even offering

(9) this for the truth of the matter asserted, I'm

(10) offering it for the fact that Mr. Hines saw this

(11) from his team, understood that, they hold out

(12) these records to review to get give to Mr.

(13) Hanson. Every witness has said there's nothing

(14) here except his own correspondence.

(15) All that's floating around out there is Mr.

(16) Hanson's conspiracy theory. What I'm trying to

(17) get into the record is that Mr. Hines conducted

(18) a good faith search.

(19) THE COURT: Objection is overruled.

(20) You may ask the question.

(21) MR. HANSON: I need to response.

(22) He just testified that the rules don't

(23) apply to the University of Florida, and you just

(24) said that you're right.

(25) THE COURT: He did not testify, and I did

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(1) not say he was right.

(2) MR. HANSON: You did.

(3) THE COURT: I overruled your objection based
(4) on multiple reasons.

(5) We're limited in time.

(6) The witness may answer the question.

(7) And, Mr. Hines, do you remember the
(8) question?

(9) **A Could you restate the question, please?**

(10) BY MR. KIRKCONNELL:

(11) Q Yes.

(12) What did you understand Ms. Quillen's -- as
(13) the public records director, what did you understand
(14) Ms. Quillen's inquiry to UFIT to be about?

(15) MR. HANSON: Same objection. Speculation,
(16) hearsay, facts not in evidence.

(17) THE COURT: Overruled.

(18) **A I understood that Ms. Quillen had asked**
(19) **Daniel Quiros from the IT staff to pull up the**
(20) **results related to specific search terms listed in**
(21) **the message.**

(22) BY MR. KIRKCONNELL:

(23) Q Mr. Hines, I'm going to cut to the chase,
(24) because I think we're short on time here.

(25) Did you go back and forth with UFIT and get

[Page 120]

(1) multiple batches of search records?

(2) **A Yes.**

(3) MR. HANSON: I'm going to object that it's
(4) vague, irrelevant.

(5) THE COURT: Overruled.

(6) BY MR. KIRKCONNELL:

(7) Q Why did you do that?

(8) **A We wanted to make sure that the searches**
(9) **were done properly.**

(10) Q Okay. Who is Samantha Sunne?

(11) **A Samantha Sunne is an employee over at the**
(12) **Brechner Center.**

(13) Q And did you also have her e-mail searched
(14) for responsive records?

(15) **A Yes.**

(16) Q Would you please go to Exhibit X. This is
(17) page 147.

(18) And does this e-mail, along with the e-mail
(19) on page 152, Exhibit Y, does it indicate the search
(20) that was done of her e-mail?

(21) **A Yes.**

(22) MR. HANSON: I object. It requires
(23) speculation, hearsay.

(24) THE COURT: Overruled.

(25) BY MR. KIRKCONNELL:

[Page 121]

(1) Q Were there any documents located?

(2) A No.

(3) Q Did you eventually produce the records to
(4) Mr. Hanson?

(5) A Yes.

(6) MR. HANSON: Object, that it's vague.

(7) THE COURT: Overruled.

(8) BY MR. KIRKCONNELL:

(9) Q Could you -- were there any redactions to
(10) those documents?

(11) A No, there were no redactions.

(12) Q Were any documents withheld from him?

(13) A No, there were not.

(14) MR. HANSON: I object. It's vague.

(15) THE COURT: Overruled.

(16) BY MR. KIRKCONNELL:

(17) Q Did the University of Florida assert any
(18) exemptions?

(19) A No.

(20) Q And did Mr. Hanson react to that
(21) production?

(22) A Yes.

(23) Q And if you go to Exhibit C. I'm on page
(24) 62.

(25) Can you briefly describe what Mr. Hanson's

[Page 122]

(1) reaction was?

(2) **A In the second paragraph, after it says good**
(3) **afternoon, the last sentence says, I must make it**
(4) **clear that I strongly disagree that closure of this**
(5) **request is appropriate.**

(6) Q Did the University respond to that
(7) objection?

(8) **A Yes.**

(9) Q Could you please turn to Exhibit R? We're
(10) on page 123.

(11) Since this is already admitted into
(12) evidence, you don't have to read it. But if you
(13) could summarize this, Mr. Hines, pretty briefly.
(14) What the University say to Mr. Hanson?

(15) **A The University contended that they complied**
(16) **with all of the public records laws, the University**
(17) **conducted a good faith using, you know, the**
(18) **parameters provided for the search, reached out to**
(19) **the two faculty members, a full legal review was**
(20) **done on any of the potentially responsive materials,**
(21) **and --**

(22) Q The --

(23) **A -- there weren't any exemptions or items**
(24) **withheld.**

(25) Q Sure. Thank you.

[Page 123]

(1) Did Mr. Hanson react to this message from
(2) the University?

(3) **A Yes.**

(4) Q If you would go to Exhibit D. I'm on page
(5) 68 of the PDF. And I would like you to flip down to
(6) the third page of this, which is on page 70.

(7) Do you see where it begins on Wednesday,
(8) May 6th, at the middle of the page?

(9) **A Yes.**

(10) Q Was this Mr. Hanson's reaction to the
(11) message we were just discussing?

(12) **A Yes.**

(13) Q After receiving this message, did the
(14) University attempt to clarify with Mr. Hanson?

(15) MR. HANSON: I'm just going to object that,
(16) it's --

(17) **A Yes.**

(18) MR. HANSON: -- vague, it's -- it's a very
(19) detailed e-mail, and I have no idea what he's
(20) talking about in terms of how it was addressed
(21) or what he's asking about.

(22) THE COURT: Overruled.

(23) BY MR. KIRKCONNELL:

(24) Q After receiving these e-mails from Mr.
(25) Hanson, did the University double check its

[Page 124]

(1) searches?

(2) **A Yes.**

(3) MR. HANSON: I've got to object. It's
(4) vague, and speculation.

(5) THE COURT: Overruled.

(6) BY MR. KIRKCONNELL:

(7) Q Why did the University double check its
(8) searches?

(9) **A To make sure everything was done the proper**
(10) **way.**

(11) Q Can you please flip to what's been marked
(12) as Exhibit AA. I'm on page 165 of the packet.

(13) And did the University ask Mr. Hanson to
(14) clarify what he wanted with his records?

(15) **A Yes.**

(16) Q What did you ask?

(17) **A We asked -- we -- we said, the University**
(18) **did locate public records that contained the search**
(19) **term Hanson, which relate to individuals who are not**
(20) **you, but have the same last name, do you seek those**
(21) **public records?**

(22) Q What was Mr. Hanson's response?

(23) **A No.**

(24) Q Was his originals -- was his original
(25) request in March --

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(1) **A Yes.**

(2) Q -- direct to -- was that directed to
(3) communications related to himself?

(4) **A Yes.**

(5) Q Did he ever ask you -- before suing the
(6) University, did he ever ask for records that did not
(7) relate to himself?

(8) **A No.**

(9) Q Did you work in good faith to complete this
(10) records request?

(11) MR. HANSON: I object.

(12) **A Yes.**

(13) MR. HANSON: It requires a conclusion about
(14) his own conduct.

(15) MR. KIRKCONNELL: May I respond, your
(16) Honor? Do I need to respond?

(17) THE COURT: You may.

(18) MR. KIRKCONNELL: Your Honor, Mr. Hines's
(19) credibility is at issue here. It's his job to
(20) conduct these searches, and I think it's of
(21) evidentiary value for him to assert whether or
(22) not he complied in good faith with the statute.
(23) That's the statutory standard.

(24) So, I don't think it's asking for a legal
(25) opinion. It's asking him a commonsense

[Page 126]

(1) question, did you do your job in good faith?

(2) **A Yes.**

(3) BY MR. KIRKCONNELL:

(4) Q No, let the Judge rule please, Mr. Hines.

(5) THE COURT: The objection is overruled.

(6) BY MR. KIRKCONNELL:

(7) Q You can answer the question.

(8) **A Yes.**

(9) Q The University submitted documents to the
(10) Court in this case, you're aware of that, Mr. Hines?

(11) **A Yes.**

(12) Q Are -- are those the records that were
(13) yielded from the searches minus some redundancy?

(14) **A Yes.**

(15) MR. HANSON: I object. That requires
(16) speculation, it's overly broad, yet vague at the
(17) same time.

(18) What documents are -- are we talking about
(19) here? Are we just lumping everything together?

(20) THE COURT: Sustained. I'll sustain the
(21) objection.

(22) MR. KIRKCONNELL: Yes, ma'am.

(23) BY MR. KIRKCONNELL:

(24) Q Mr. Hines, the University submitted to the
(25) Court with your affidavit 470 some pages. Can you

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(1) explain to the Court what those documents are?

(2) **A Yes. The 479 pages were an accumulation of**
(3) **all of the various IT searches that were conducted.**

(4) Q And does that -- did the University
(5) eliminate redundancies within those productions?

(6) **A Yes.**

(7) MR. HANSON: I'm going to object to the
(8) extent it requires speculation.

(9) THE COURT: Overruled.

(10) MR. HANSON: We don't know if he did it. I
(11) mean --

(12) BY MR. KIRKCONNELL:

(13) Q Mr. Hines, are you part of a conspiracy to
(14) deny public records to Mr. Hanson?

(15) **A No.**

(16) Q Have you ever heard of him before this
(17) public records request?

(18) **A No.**

(19) Q To your knowledge is anyone at the
(20) University of Florida part of a conspiracy to deny
(21) public records to Mr. Hanson?

(22) **A No.**

(23) Q And were there any records that were
(24) responsive to his request that were not produced to
(25) him?

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(1) **A No.**

(2) MR. HANSON: I'm going to object that it
(3) requires a legal conclusion. It assumes facts
(4) not in evidence, requires speculation.

(5) THE COURT: Overruled.

(6) MR. KIRKCONNELL: No more questions, your
(7) Honor.

(8) Thank you.

(9) MR. HANSON: I have quite a few --

(10) THE COURT: Is there anything --

(11) MR. HANSON: I have quite a few questions,
(12) your Honor.

(13) THE COURT: You have -- you have three
(14) minutes. I have -- I have a hard stop. I have
(15) a hearing at 11:30. I said I would give you
(16) half an hour, I ended up giving you an extra
(17) hour.

(18) MR. HANSON: Your Honor, I need more time
(19) than that. I mean, I'll do as much as I can,
(20) but that's not going to do it.

(21) THE COURT: I -- I -- well, Mr. Hanson, you
(22) didn't use your time very wisely today despite
(23) the Court admonishing you to do so.

(24) You have three minutes.

(25) MR. HANSON: This isn't a Court. This

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(1) isn't a Court. This is John 3:18, where I come
(2) and tell the truth to all of these Courts, and
(3) you all say, what is truth? We do what we want.
(4) And that's -- that's who you are. That's who
(5) you are in this system, is tyrants. You're a
(6) tyrant, Judge Keim.

(7) MR. KIRKCONNELL: I understood that --

(8) MR. HANSON: Put it any place you want, you
(9) are a tyrant.

(10) Mr. Kirkconnell, you are unethical. You
(11) know that these --

(12) THE COURT: Mr. Hanson, if you want to keep
(13) speaking, you're going to not have an
(14) opportunity to question this witness. I gave
(15) you three minutes, you're down to two now.

(16) MR. HANSON: All right.

(17) REDIRECT EXAMINATION

(18) BY MR. HANSON:

(19) Q Sir, do you perform searches personally?

(20) **A No.**

(21) Q Are you aware of anyone within the
(22) University of Florida ever trying to get you to not
(23) put something in the public records response because
(24) it would be embarrassing?

(25) **A No.**

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(1) Q Has anyone ever suggested to you -- well,
(2) strike that.

(3) Is it you that makes the decision of
(4) whether to include documents of the public records
(5) or that's the attorneys?

(6) **A Not me.**

(7) Q So, you were asked at the end whether the
(8) University provided all responsive records to the
(9) public records request. You can't do that because
(10) you don't make the decision; right?

(11) MR. KIRKCONNELL: I'm going to object, your
(12) Honor. He's the coordinator. I mean, he is
(13) responsible for --

(14) THE COURT: Objection is overruled.

(15) BY MR. HANSON:

(16) Q (CQ) Sir, do you make the decisions on what
(17) to produce versus what not to produce?

(18) **A No.**

(19) MR. KIRKCONNELL: Objection. Asked and
(20) answered.

(21) THE COURT: Sustained.

(22) BY MR. HANSON:

(23) Q Do you watch IT do the searches?

(24) **A No.**

(25) Q I want to go to, I think it was page 109,

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(1) was the first one that you all looked at. And I
(2) believe you said the e-mail May 4th of 2026, where
(3) it says -- oh, shoot. Yeah, it's the 109 e-mail,
(4) May 4th, 10:40 a.m., it appears that search tools
(5) stalled, when locating this message the tool also
(6) identified 17 other messages that matched the
(7) criteria, and should have been included previously.

(8) How do you know that they completed the
(9) search from that?

(10) **A It's IT's job to complete searches.**

(11) Q Do you know for a fact that they completed
(12) the search after March 9th?

(13) **A If IT responds it's completed, you know, a**
(14) **search as we've given them parameters, that's, you**
(15) **know, part of the process.**

(16) Q (CQ) But, I mean, do you personally have
(17) knowledge of a new search being performed on
(18) Professor Bambauer's e-mail from March 9th forward,
(19) do you have personal knowledge of that search?

(20) MR. KIRKCONNELL: I'm going to object. The
(21) witness already answered this question in the
(22) affirmative.

(23) THE COURT: Objection is sustained.

(24) MR. HANSON: I'm sorry. I mean, he's --
(25) he's instructing the witness.

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(1) Why does he need to instruct the witness if

(2) UF has nothing to hide? This is so --

(3) THE COURT: Any other questions for Mr.

(4) Hines?

(5) MR. HANSON: Yeah, I've got quite a few,

(6) your Honor, but it's just frustrating because he

(7) can't possibly know the answer to that, it's

(8) just logically impossible. But the Court is --

(9) is apparently accepting that.

(10) BY MR. HANSON:

(11) Q Let's go to 123.

(12) The issues that I raised in my e-mail on

(13) March 19th of 2026, are those legal issues or are

(14) those -- those within your purview?

(15) **A Are these -- I don't see anything on the**

(16) **screen. There --**

(17) Q (CQ) Oh, I'm sorry. I -- let me -- let me

(18) get this back up.

(19) Share.

(20) Do you see it now, sir? It looks like it's

(21) a March 19th e-mail, 10:31 a.m. I mean, I can read

(22) it, if you want. But if you just scan it, is it

(23) legal issues that I'm raising?

(24) MR. KIRKCONNELL: I'm going to object.

(25) He's not a party to this e-mail.

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(1) MR. HANSON: I believe you had him testify
(2) about it.

(3) THE COURT: What's the relevance, Mr.
(4) Hanson, of whether the e-mail contains legal
(5) issues when it's not even directed to him?

(6) MR. HANSON: Opposing counsel is offering
(7) Mr. Hines's testimony as though it's competent
(8) substantial evidence of good faith compliance,
(9) it's not. It's speculation. There's no first
(10) party knowledge of the things that he's walking
(11) the witness through, and I'm trying to make the
(12) point that he's already said he didn't --
(13) doesn't make decisions on legal issues, and
(14) these are legal issues that are raised. So, it
(15) doesn't make sense that on cross examination he
(16) confirmed that he handled all of this, all of
(17) this was handled when clearly it would have been
(18) legal that would have handled this.

(19) THE COURT: Objection is sustained.

(20) With that you're out of time.

(21) What I am going to -- given the fact that
(22) we are out of time, I will allow you each to
(23) submit any additional legal briefs, and closing
(24) arguments that you would like to.

(25) How much time would you like to do that?

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(1) MR. HANSON: I mean, we had, what, eight
(2) days to get to a final hearing from when you
(3) denied all discovery.

(4) THE COURT: I'm asking how much time you
(5) would like, Mr. Hanson.

(6) If you don't want to give me a date, I will
(7) pick a date for you.

(8) MR. HANSON: Yeah, your Honor, I mean, it's
(9) so frustrating to practice in front of someone
(10) like you because you're not honest.

(11) THE COURT: Okay. You have 15 days to
(12) submit any closing arguments. The legal briefs,
(13) they will be limited to 20 pages each.

(14) To the extent, Mr. Kirkconnell, any
(15) documents have not been produced, that the
(16) University of Florida has withheld any documents
(17) at all from the request for the public records
(18) by Mr. Hanson, any of those documents that have
(19) been withheld shall be produced to the Court for
(20) an in-camera inspection within five days of
(21) today.

(22) MR. KIRKCONNELL: Your Honor, may I -- may
(23) I ask one thing?

(24) So, what we have already produced --
(25) produced to the Court is the -- the University

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(1) documents, last of them were done in C.

(2) What we will do now is we will make sure
(3) that every page forward done in C gets submitted
(4) to the Court.

(5) THE COURT: Correct.

(6) MR. KIRKCONNELL: So, I don't think there
(7) will be much difference, but it will be -- but
(8) there will be redundancy, your Honor, just so
(9) you know.

(10) THE COURT: Yes. All redundancy, every
(11) page accounted for to the Court for an in-camera
(12) inspection within five days of today.

(13) MR. KIRKCONNELL: Yes, ma'am.

(14) MR. HANSON: And, your Honor, I would ask
(15) that the production specifically line up with
(16) the files that are created and documented in the
(17) exhibits that we've been discussing here. I
(18) don't want them to just give documents.

(19) THE COURT: Mr. Hanson, I've made my ruling.
(20) I've entered my order. I've given you an hour
(21) more than you had. We're out of time. I have
(22) a --

(23) MR. HANSON: Why are you so against my
(24) constitutional rights?

(25) THE COURT: That concludes this hearing.

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- (1) MR. HANSON: So, you're not going to
- (2) make --
- (3) (Thereupon, the Judge ended the hearing at
- (4) 11:35 a.m.)
- (5)
- (6)
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(1) COURT CERTIFICATE

(2) STATE OF FLORIDA)

COUNTY OF MARION)

(3)

I, DIANE B. GULDIN, certify

(4)

that I was authorized to and did stenographically

(5)

report the foregoing proceedings and that the

(6)

transcript is a true and complete record of my

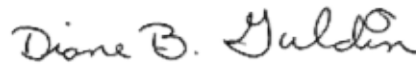
(7)

stenographic notes.

(8)

Dated this 8th day of September, 2026.

(9)



(10)

DIANE B. GULDIN, R.P.R.

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